Contract No. 20000003712

CITY OF RICHMOND
GOODS AND SERVICES CONTRACT

This Contract, dated this 20th day of September, 2019 (the "Commencement Date") between the City of Richmond, Virginia (the "City") and ATAB, LLC dba Dominion Elevator Services, is binding among and between these parties as of the date of the City's final signature.

WHEREAS, the City has awarded the Contractor this Contract pursuant to Request for Proposal No. 190020293 (the "Request for Proposals") for Elevator Inspection Services.

THEREFORE, in consideration of the Recital set forth above and good and valuable consideration as set forth below, the parties agree as follows:

1. **Scope of Contract.** The Contractor shall provide the goods and services to the City as set forth in the Contract Documents enumerated in Section 3 below.

2. **Contract Amount.** The maximum authorized contract amount for this Contract is Six Hundred Thousand U.S. Dollars ($600,000.00). The aggregate of all payments by the City under this Contract shall not exceed this amount. All payments shall be as provided in the Contract Documents.

3. **Contract Documents.** This Contract shall consist of the following Contract Documents, listed in order of precedence from highest to lowest:

   A. This Goods and Services Contract between the City and the Contractor.
   B. The Special Provision Terms and Conditions attached to the Request for Proposals.
   C. The General Terms and Conditions attached to the Request for Proposal.
   D. The Specifications attached to the Request for Proposal.
   E. The Contractor's completed and signed proposal dated May 24, 2019.
   F. The Instructions to offerors attached to the Request for Proposals.

   All of these documents are incorporated herein by reference.

IN WITNESS WHEREOF, the parties hereto on the latest day and year written below have executed this Contract.

For the CONTRACTOR:

By: Sean Darby 9/18/19
(signature in ink) *Date*

SEAN DARBY
(typed name)

CEO
(typed title)

IF A CORPORATION, AFFIX CORPORATE SEAL

For the CITY:

By: Betty J. Burrell 9/20/2019
Betty J. Burrell *Date*
Director of Procurement Services

CITY OF RICHMOND
DEPARTMENT OF PROCUREMENT SERVICES
RICHMOND, VIRGINIA
(804) 646-5716
April 25, 2019

Request for Proposals No. T190020293
for
Elevator Inspection Services for the City of Richmond

Mandatory Pre-Proposal Conference May 9, 2019 10:00 A.M.
Questions and Request for Information Deadline, May 16, 2019 5:00 P.M.
Due Date: May 28, 2019 2:00 P.M.
Proposal Opening and Committee Meeting, May 29, 2:00 P.M.

Receipt and Pre-Proposal Conference Location:
City Hall, 900 East Broad Street, 11th floor, Room 1104

Request for Proposal Prepared by:
Name: Trinika Lewis-Wilson
Title: Procurement Analysts
Telephone (804) 646-5820
Fax (804) 646-5989
Email: Trinika.wilson@richmondgov.com
Department of Procurement Services
http://www.richmondgov.com/Procurement/BidsProposals.aspx

SIGNATURE SHEET

This signature sheet must be included as part of the offeror's proposal, or the City will not consider the proposal. The offeror's signature below certifies that this proposal as submitted complies with, and the offeror agrees to be legally bound by, all terms and conditions set forth in Request for Proposals No. **T190020293** for **Elevator Inspection Services**. The undersigned hereby represents and warrants that the undersigned is duly authorized to sign and submit this proposal on behalf of the offeror.

Complete Legal Name of Offeror Firm: _____

"Order from" Address: _____

_____

"Remit to" Address: _____

_____

Federal EIN / SSN: _____

Authorized Signature: _____

Printed Name of Signatory: _____

Title of Signatory: _____

Telephone Number with Area Code: _____

Fax Number with Area Code: _____

E-Mail Address: _____

Date: _____

STATEMENT OF NO OFFER

Offerors not submitting an offer for the commodity or service requested must fax this form to the Department of Procurement Services at (804) 646-5989 prior to the solicitation due date. Questions concerning requirements must be brought to the attention of the Contracting Officer responsible for this solicitation **at least ten business days prior to the solicitation closing date. Questions are due no later than May 16, 2019.**

RFP No.: _____ Service: _____

The undersigned firm declines to submit an offer on the RFP for the following reasons:

- ☐ Unable to meet statement of needs
- ☐ Requirements are unclear or restrictive (explain in remarks)
- ☐ Unable to meet required delivery or performance date
- ☐ Unable to meet insurance requirements
- ☐ Insufficient time to respond to the solicitation
- ☐ Do not offer requested commodity or service, please remove our name from the City of Richmond's bidder's list for this commodity or service only.
- ☐ Other (explain in remarks)

Remarks:

_____

_____

_____

_____

A firm's failure to return completed form may result in the removal from the City of Richmond bidder's list for the commodity or service requested above.

Firm Name: _____

Authorized Representative: _____

Signature: _____

Telephone: _____

Date: _____

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STATE CORPORATION COMMISSION FORM

Complete Legal Name of Bidder Firm: _____

Virginia State Corporation Commission registration information. The bidder:

☐ is a corporation or other business entity with the following State Corporation Commission identification number:_____

-OR-

☐ is not a corporation, limited liability company, limited partnership, registered limited liability partnership, or business trust

-OR-

☐ is an out-of-state business entity that does not regularly and continuously maintain as part of its ordinary and customary business any employees, agents, offices, facilities, or inventories in Virginia (not counting any employees or agents in Virginia who merely solicit orders that require acceptance outside Virginia before they become contracts, and not counting any incidental presence of the bidder in Virginia that is needed in order to assemble, maintain, and repair goods in accordance with the contracts by which such goods were sold and shipped into Virginia from bidder's out-of-state location)

-OR-

☐ is an out-of-state business entity that is including with this bid an opinion of legal counsel which accurately and completely discloses the undersigned bidder's current contacts with Virginia and describes why those contacts do not constitute the transaction of business in Virginia within the meaning of section 13.1-757 or other similar provisions in Titles 13.1 or 50 of the Code of Virginia

-OR-

☐ has not completed any of the foregoing options but currently has pending before the State Corporation Commission an application for authority to transact business in the Commonwealth of Virginia and wishes to be considered for a waiver to allow the bidder to submit the State Corporation Commission identification number after the due date for bids. The bidder shall promptly provide any information the City requires to enable the City to properly evaluate the bidder's request for such a waiver. The City reserves the right to determine in its sole discretion whether to allow such a waiver.

PART I
STATEMENT OF NEEDS

1.0 **Introduction.**

1.1 **Purpose.** The City of Richmond is soliciting proposals to establish a contract through competitive negotiations for elevator inspection services for buildings within the city of Richmond.

1.2 **Background.** The City of Richmond's Department of Planning and Development Review uses a third party contractor to perform all elevator, escalator, and lift inspections and plan reviews in the city of Richmond. There are approximately 2,500 vertical transport devices within the city of Richmond.

1.3 **Pre-Proposal Meeting.** There will be a mandatory pre-proposal meeting at 9:00 A.M on Thursday, May 9, 2019, in Room 1104 at 900 East Broad Street in Richmond, Virginia.

1.4 **Definitions.** The following words and phrases, when used in this Request for Proposals, have the meanings ascribed to them in this section, except where the context clearly indicates that another meaning is intended:

A. **AHJ.** "AHJ" means authority having jurisdiction as defined in the ASME 17.1, and which is the City for purposes of this Contract.

B. **ANSI.** "ANSI" means American National Standards Institute.

C. **ASME.** "ASME" means the American Society of Mechanical Engineers.

D. **ASME 17.1**. "ASME 17.1" Safety Code for Elevators and Escalators.

E. **ASME 17.2.** "ASME 17.2" - Guide for Inspections of Elevators, Escalators, and Moving Walks.

F. **Building Commissioner.** "Building Commissioner" means the Commissioner of Buildings as that term is defined in section 5-4 of the Code of the City of Richmond.

G. **Building Owner.** "Building Owner" means the person and related contact information listed in the City's software application as a building's owner of record.

H. **Category 1 Inspections.** "Category 1 Inspections" means 1 year life-safety elevator testing required by the AHJ.

I. **Category 5 Inspections.** "Category 5 Inspections" means 5 year life-safety elevator testing required by the AHJ.

J. **City.** "City" means the City of Richmond, a municipal corporation and political subdivision of the Commonwealth of Virginia, acting through its duly authorized representatives.

K. **Contract.** "Contract" means the Goods and Services Contract, a sample of which is attached to this Request for Proposals, together with all Contract Documents referred to therein, awarded to the Contractor as a result of this solicitation.

L. **Contractor.** "Contractor" means the offeror to whom the City awards the Contract.

M. **DPOR.** "DPOR" means The Virginia Department of Professional and Occupational Regulation.

N. **Elevating Equipment.** "Elevating Equipment" means equipment such as elevators, escalators, dumbwaiters, moving walks, moving ramps, man lifts, and any similar hoisting or elevating equipment per the standard referenced in the current version of the VSUBC.

O. **NASEA.** "NASEA" means National Association of Elevator Safety Authorities.

P. **New or Altered Elevating Equipment.** "New or Altered Elevating Equipment" means new Elevating Equipment or existing Elevating Equipment which requires maintenance or replacement.

Q. **Offeror.** "Offeror" means any person or legal entity that may choose to submit a proposal in response to this solicitation.

R. **QEI Certified.** "QEI Certified" means a certification obtained through state-recognized classes, education, examination, and certification process based on the ASME QEI Standard for Qualified Elevator Inspectors as well as NASEA's terms.

S. **QEITF Certified.** "QEITF Certified" means a certification obtained through state-recognized classes, education, examination, and certification process based on the ASME QEI Standard for Qualified Elevator Inspectors through ANSI.

T. **Routine (6-Month) Inspections.** "Routine (6-month) Inspections" means 6 month life-safety elevator testing required by the AHJ. The routine inspection shall occur 6-months after a Category 1 or Category 5 inspection

U. **VUSBC.** "VUSBC" means the current edition of the Virginia Uniform Statewide Building Code as codified in the Virginia Administrative Code.

2.0 Requirements and Deliverables.

As further described in this Statement of Needs, the Contractor shall review construction documents, perform acceptance tests for New or Altered Elevating Equipment, maintain an inspection quality control program, respond to complaints and accidents, and perform Category 5 Inspections, Category 1 Inspections, and Routine (6-Month) Inspections of existing Elevating Equipment at the intervals required in the VUSBC.

2.1 **Qualifications.**

A. As required by the VUSBC, the Contractor must maintain compliance with all applicable certification requirements throughout the term of this Contract.

B. All Contractor personnel performing inspections on Elevating Equipment, reviewing plans or drawings, or performing tests on Elevating Equipment must be a QEI Certified or QEITF Certified elevator inspector (or both), plan reviewer, or a Virginia DPOR registered design professional.

C. The Contractor shall have at least one licensed QEI Certified elevator inspector supervisor employed at all times during the term of the Contract.

D. The Contractor shall only assign those personnel properly trained in applicable VSUBC codes and in current methods of inspection and maintenance of Elevating Equipment to perform work for the City pursuant to this Contract.

E. If the City provides written notice to the Contractor that the City deems a member of the Contractor's personnel unqualified to perform the work because of insufficient experience or insufficient certifications or unsatisfactory due to a performance that is inadequate, the Contractor shall, within 48 hours of receipt of the City's written notice, assign a new member of Contractor's personnel to perform the duties required under the Contract.

2.2 **Inspections, Generally.**

All plan reviews and inspections performed by the Contractor must comply with the current edition of the Virginia Uniform Statewide Building Code. The Contractor shall perform all inspections and tests as required by and in conformance with ASME 17.2.

2.3 **Inspections of Existing Elevating Equipment**.

A. The Contractor shall utilize electronic devices provided by the City (including iPads and tablets) for documenting inspection results for inspections completed by the Contractor pursuant to this Contract. The Contractor shall input inspection results into any software application that is identified by the City for use by the Contractor pursuant to this Contract.

B. There are currently more than 2500 units of Elevating Equipment in the city of Richmond. The City will provide the Contractor with a list of existing Elevating Equipment within five business days of the Commencement Date of the Contract that identifies the Elevating Equipment requiring inspection pursuant to this section 2.3. The City may update the list of new and existing Elevating Equipment at any time.

C. The Contractor shall provide Category 5 Inspections, Category 1 Inspections, Routine (6-Month) Inspections, and appropriate tests of all existing Elevating Equipment at intervals recommended by ASME A17.2.

D. After the Contractor completes an inspection, the Contractor must either (1) "pass" the Elevating Equipment inspected if it meets the applicable VSUBC requirements and enter inspection results utilizing the electronic devices provided by the City, or (2) fail the Elevating Equipment inspected if it does not comply with the applicable VSUBC requirements, enter the results as "failed" utilizing the electronic devices provided by the City, and provide an explanation for the rejection along with any appropriate documentation and the VSUBC sections for each violation. The Contractor shall notify the Building Owner, or their authorized representative electronically, using the City's designated software application, of all inspection results.

E. The Contractor must clearly mark each inspection report as either "Passed" or "Failed" and electronically submit each report utilizing the electronic devices provided by the City and the City's designated software application.

F. The Contractor shall perform an inspection no later than seven calendar days prior to the expiration of the current elevator certificate for any unit of Elevating Equipment.

G. The Contractor shall perform the inspection tasks described in ASME 17.2 herein for each inspection performed on a unit of existing Elevating Equipment pursuant to this section 2.3.

H. The Contractor must perform re-inspections of Category 5 Inspections, Category 1 Inspections, and Routine (6-Month) Inspections within 30 calendar days of any initial inspection of Elevating Equipment that resulted in a failed inspection.

I. If the Contractor finds any condition affecting the safety of the passengers or Elevating Equipment, the Contractor shall report such a condition immediately to the Building Owner or their authorized representative and notify the Building Commissioner, or their designee, within 24 hours of the Contractor's discovery of such a condition. The Contractor shall enter these inspection results into the City's designated software application and attach any appropriate documentation utilizing the electronic devices provided by the City to clearly list the violations found and the action recommended to the Building Owner or their authorized representative

and the Building Commissioner or their designee. The Elevating Equipment shall not be returned to service by the Contractor until subsequent inspection by the Contractor confirms the elimination of the condition the Contractor found to be affecting the safety of the passengers or the Elevating Equipment.

2.4 **Final Inspections of New or Altered Elevator Equipment**.

A. The Contractor shall utilize electronic devices provided by the City (including iPads and tablets) for documenting inspection results for inspections completed by the Contractor pursuant to this Contract. The Contractor shall input inspection results into any software application that is identified by the City for use by the Contractor pursuant to this Contract.

B. The Contractor will receive electronic requests through the City's designated software application for final inspections of New or Altered Elevating Equipment. The Contractor shall complete an inspection for any request received.

C. After the Contractor completes an inspection of New or Altered Elevating Equipment, the Contractor must either (1) "pass" the Elevating Equipment inspected if it meets the applicable VSUBC requirements and enter inspection results utilizing the electronic devices provided by the City, or (2) fail the Elevating Equipment inspected if it does not comply with the applicable VSUBC requirements, enter the results as "failed" utilizing the electronic devices provided by the City, and provide an explanation for the rejection along with any appropriate documentation and the VSUBC sections for each violation. The Contractor shall notify the Building Owner or their authorized representative electronically, using the City's designated software application, of all inspection results.

D. The number of New or Altered Elevating Equipment plans to be reviewed and final inspection tests to be conducted by the Contractor will depend upon the actual number of Elevating Equipment construction permits issued during the term of the Contract.

E. The Contractor shall perform final inspection acceptance tests for New or Altered Elevating Equipment within 48 hours of the Contractor's receipt of the request within the City's designated software application.

F. The Contractor shall re-inspect New or Altered Elevating Equipment within 1 working day of any re-inspection request submitted to the Contractor through the City's designated software application if the prior inspection(s) of that Elevating Equipment resulted in failure.

G. Within the City's designated software application, the Contractor shall clearly mark each inspection report as either "Passed" or "Failed" and sign each inspection report electronically.

2.5 **Preparation of Notices of Violation**.

If, during the course of performing services under this Contract, the Contractor identifies any violation that requires issuance of a notice of violation under the VUSBC, the Contractor shall deliver a notice of violation in accordance with all requirements of the VUSBC to the Business Owner of the Elevating Equipment affected by the violation.

2.6 **Quality Control Program.**

A. The Contractor shall establish and maintain a quality control program to review a percentage of the completed monthly inspections that will be billed to the City for payment for each month of the Contract

B. The quality control program must include the following components:

1. Verification of no less than 10% of all inspections for each type of inspection performed (Category 1 Inspection, Category 5 Inspection, Routine (6 month) Inspection) shall be conducted by a QEI Certified or QEITF Certified employee of the Contractor.
2. Quality control inspections shall be performed by a QEI Certified elevator inspector supervisor or a qualified employee of the Contractor other than the Contractor's qualified employee who performed the original inspection.
3. The Contractor shall electronically submit a monthly report to the Building Commissioner, or their designee, using the City's designated software application providing results of each quality control inspection compared to the original inspection. The Contractor shall provide an electronic copy of the original inspection report and an electronic submission of the quality control inspection report.
4. The Contractor shall attend a monthly meeting with the Building Commissioner or their designee to review the monthly quality control report required by section 2.6.

2.7 **Plan Reviews.**

A. The Contractor shall review all construction documents for proposed installation of New or Altered Elevating Equipment. The City will provide the construction documents electronically to the Contractor. The number of plans to be reviewed will depend upon the actual number of Elevating Equipment construction permits issued during the term of the Contract. The Contractor shall utilize electronic devices provided by the City (including iPads and tablets) for performing plan reviews required by this Contract. The Contractor shall input plan review results into any software application that is identified by the City for use by the Contractor pursuant to this Contract.

B. Using the City's designated software application, the Contractor shall certify whether the construction documents comply with applicable VSUBC codes. If the Contractor rejects the construction documents for any unit of Elevating

Equipment, the Contractor shall provide a detailed, written explanation of the rejection.

C. Using the City's designated software application, the Contractor shall submit all approved construction documents and denial notices to the Building Commissioner and their designee for signature and processing.

D. The Contractor shall complete the plan review, documentation of approval or denial, and notification to the City in not more than 5 business days from the date the plans were provided to the Contractor through the City's designated software application. The Contractor shall clearly mark each plan review report "Approved" or Denied" and sign each plan review report. A rejected plan review report shall clearly state a description of why the plan review is being rejected, along with the appropriate code section

2.8 **Elevator Accidents, Complaints, and Facility Emergencies.**

A. The Contractor shall respond to any complaint or accident within three (3) hours of receipt of notice of the complaint or accident and proceed to investigate the complaint or accident to ensure the safety of all Elevating Equipment in the city of Richmond.

B. The Building Commissioner or their designee must be able to contact the Contractor's inspectors and supervisors by mobile phone and email for response to emergencies relating to Elevating Equipment. The Contractor shall respond within three (3) hours of receipt of notice from the City to any emergency relating to structures containing Elevator Equipment.

2.9 **Field Work Requirements.**

A. The Contractor shall provide its own transportation and furnish all necessary equipment, except for the City-issued electronic devices, for use in performing services required under this Contract. Such equipment shall include, but is not limited to the following:

1. A flashlight with a non-conductive case for inspecting wire ropes and other equipment in locations where sufficient natural or artificial light is not available
2. 6-foot rule of non-conductive material
3. A set of thickness gauges
4. Small hammer, preferably a one-half pound ball-peen
5. Chalk or crayon
6. Small metal mirror to use in examining wire ropes or other parts of equipment normally inaccessible

7. Safety hat (non-conductive)

8. Rope caliper

9. Sheave groove gauge

10. Safety shoes

11. A copy of the applicable ordinances and regulations of the City of Richmond

12. A copy of the latest applicable edition of ASME A17.1

13. A copy of the latest edition of ASME A17.2

14. Current edition of the National Electrical Code

15. Cell phone

2.10 **Additional Assistance Required**.

The Contractor shall make investigations and inspections as needed to provide the City with information for court cases for matters including, violations, defaults, and civil suits. The Contractor shall make its personnel available for meetings, hearings, and court appearances, and the Contractor shall ensure its personnel appear in court to testify or to act as expert witnesses upon request by the City.

2.11 **Scheduling of Work**.

A. The Contractor shall perform all work under this Contract, with the exception of services on fire and emergency controls which is governed by section 2.11(B) herein, during regular business hours of 8:00 a.m. to 5:00 p.m. on regular business days of the City unless otherwise ordered by the Building Commissioner.

B. The Contractor shall inspect fire and emergency controls during other than normal duty hours of the respective buildings housing the fire and emergency controls when it is necessary to prevent disruption of normal work activities, and whenever requested by the building's owner, agent, or on-site representative.

C. The Contractor may observe all City holidays. The Contractor, with both (i) the written consent of the Building Owner (or their authorized representative) for any building within which the Contractor will be performing work, and (ii) the consent of the Building Commissioner or their designee, may perform work under this Contract on Federal, State, or City holidays, or during hours other than regular working hours (all of which are deemed to be "after hours" for payment purposes).

D. The Contractor shall comply with the scheduled frequency prescribed in ASME codes for the performance of work pursuant to the Contract.

E. For failed inspections of Category 5 Inspections, Category 1 Inspections, and Routine (6-Month) Inspections, a re-inspection shall be conducted based on the time table in Table 1.0 of this Statement of Needs and ASME 17.2.

F. The City shall not be responsible for paying for incomplete or inspections performed out of sequence for Category 1 Inspections, Category 5 Inspections, and Routine (6-Month) Inspections. If the Contractor chooses to perform an inspection at a time or frequency not prescribed by the schedule set forth by the ASME 17.2, the Contractor must obtain written approval from the Building Commissioner and their designee for that variation in inspection schedule prior to the Contractor's performance of the inspection. If the Contractor chooses to perform an inspection at a time or frequency not prescribed by the schedule set forth by the VUSBC without such written approval, then the City will not be required to pay for that inspection because it will be deemed to have not been performed in accordance with this Contract.

2.12 Vertical Lift Lock Out; Out of Service Requirements

Listed below in Table 1.0 are representative examples of major deficiencies in Elevating Equipment. If the Contractor identifies any of the major deficiencies from Table 1.0 violation in Elevating Equipment while performing an inspection under this Contract for which the VUSBC requires issuance of a notice of violation, the Contractor shall deliver notice of violation to the Building Owner or their authorized representative pursuant to the requirements of the VUSBC. The Contractor shall perform a re-inspection, in accordance with the timelines listed in Table 1.0 below, of any unit of Elevating Equipment affected by a major deficiency identified by the Contractor in accordance with this section 2.12. If, upon re-inspection by the Contractor, the Contractor determines any major deficiencies affecting a unit of Elevating Equipment have not been repaired within the time line set in Table 1.0 below, the Contractor shall contact the City through the City's designated software application, and the Contractor shall lockout or shutdown the Elevating Equipment affected by the major deficiency and place it "out-of-service" immediately.

Whenever a unit of Elevating Equipment is placed "out of service," the Building Commissioner and their designee shall be notified immediately through the City's designated software application of the location of the Elevating Equipment and the reason for placing it "out of service."

Table 1.0 – Major Deficiencies in Elevating Equipment

Location	**Elevating Equipment Deficiency**	**10 Day Lock Out - notify City first**	**Lock Out Unit notify City first**	**48 Hours to Fix**	**30 days to Fix**
Machine Room	Jumped out or by-passed electrical fusing or circuitry.		X		
	Water leakage in area of electrical equipment controls		X		
	Failed safety test		X		
	Damaged or inoperative safety devices		X		
	Overheating of equipment			X	
	Vibration or noise in driving machinery			X	
	Machine, Brake, Governor or Controller equipment not operating properly		X		
	Leaking oil		X		

Location	**Elevating Equipment Deficiency**	**10 Day Lock Out - notify City first**	**Lock Out Unit notify City first**	**48 Hours to Fix**	**30 days to Fix**
	Past Due Test(s)	X			
	All other violations				X
Car/Counterweight	Inoperative or badly damaged car door safe edges and/or electric eyes				X
	Improperly adjusted care gates				X
	Safeties not operating properly				X
	Car door operator, switch or restrictor not operating		X		
	Inoperative safety devices or controls		X		
	Broken car or counterweight assembly		X		
	Running or operating erratic		X		
	Door(s) excessive slamming close fast, strong or coming off track or sill		X		
	Damaged or broken steel wire cable(s)		X		
	Broken strand or wire(s) on steel wire cable(s)				X
	Up and down Terminal slow down, stopping or final limit switches		X		
	Damaged traveling cable			X	
	Damaged or missing car cab top exit panel(s)			X	
	All other violations				X
Hoistway / Doors	Damaged or missing hoistway door, equipment or materials		X		
	Damaged or missing car/counterweight guide shoes or roller guides		X		
	Improperly adjusted hoist way doors				X
	Inoperative final limit devices		X		
	Inoperative safety devices		X		
	Leaking excessive oil in pit		X		
	Damaged or excessive hole(s) in hoistway, shaft wall(s) assemble		X		
	All other violations				X
Escalators	Inoperative safety devices		X		
	Excessive space between steps and skirt panel				X
	Broken or missing comb-plate teeth				X
	Misaligned comb-plates				X
	Unequal tension in handrails				X
	Removal of obstacles restricting easy exit from terminal landings		X		
	Worn or damaged step rollers or handrails		X		
	Missing or damaged intersection guards				X
	Step, floor or comb plate(s)		X		
	Damaged enclosure sides or overhead		X		
	Running or operating erratic		X		
	Machine, brake, governor or controller equipment not operating properly		X		
	Water leakage in area of electrical equipment controls		X		
	Fail safety test		X		
	Past due test(s)	X			
	All other violations				X

Location	**Elevating Equipment Deficiency**	**10 Day Lock Out - notify City first**	**Lock Out Unit notify City first**	**48 Hours to Fix**	**30 days to Fix**
Misc items	Storage of prohibited materials in the machine room				X
	Inoperative firefighters service				X
	Accumulation of trash, oil, and/or water in the pit				X
	Missing fan guard inside elevator enclosure				X
	Inoperative two-way emergency communications device (telephone				X
	All other violations				X
Owner certified	Inadequate car lighting or unguarded car lighting				X
	Fire extinguisher in machine room missing - expired				X
	Damaged car cab panels or car station				X
	Improper car door closing speed/pressure				X
	Missing instruction signs				X
	All other violations				X
	No Inspections due to city inspection fee non-payment delinquencies	X			

2.13 **Invoicing Requirements**.

A. The Contractor shall invoice the City every two weeks and shall submit all invoices electronically to the Building Commissioner and their designee. Each invoice must clearly describe and itemize all of the contract work performed for the City during the previous two week period for which the invoice relates.

B. Each invoice must include copies of all field inspections reports for the work that was performed during the previous two weeks.

C. In addition to a clear description of the location and work performed, the following information must also be provided with the invoice:

1. Number of plan reviews completed pursuant to section 2.7 herein.
2. Number of final inspections of New or Altered Elevating Equipment performed in accordance with section 2.4 herein.
3. Number of re-inspections of final inspections of New or Altered Elevating Equipment performed in accordance with section 2.4 herein.
4. Number of Category 1 Inspections, Category 5 Inspections, and Routine (6-Month) Inspections performed in accordance with section 2.3 herein.
5. Number of re-inspections of Category 1 Inspections, Category 5 Inspections, and Routine (6-Month) Inspections performed in accordance with section 2.3 herein.
6. Number of elevator accidents, complaints, and emergency inspections performed relating to accidents and complaints in accordance with sections 2.8 and 2.12 herein.

7. Number of tests performed after regular-working hours in accordance with sections 2.8 and 2.12 herein (and indicate number of hours spent on each test).

D. The City, in its sole discretion, determines whether any invoice is clear, properly itemized, and submitted in accordance with the terms of the Contract. If the Contractor uses abbreviations or jargons on invoices, the Contractor shall provide a key printed directly on the invoice to explain the abbreviation or jargon. The City may reject and return as unpaid any invoice that is unclear, improperly itemized, or otherwise not in compliance with the terms and conditions of the Contract.

2.14 **Reporting and Data.**

2.14.1 **Monthly Reporting & Data.** The Contractor shall provide a workload summary submitted in accordance with section 2.13 herein. The summary must include the following information:

A. Number of plan reviews completed in accordance with section 2.7 within 5 days of the Contractor's receipt of the request:

B. Number of inspections performed, categorized as follows:

1. Final inspections of New or Altered Elevating Equipment in accordance with section 2.4.
2. Annual inspections for Category 1 Inspections, Category 5 Inspections, and Routine (6-Month) Inspections performed in accordance with section 2.3.
3. Re-inspections of final inspections of New or Altered Elevating Equipment performed in accordance with section 2.4.
4. Re-inspection of Category 1 Inspections, Category 5 Inspections, and Routine (6-Month) Inspections performed in accordance with section 2.3.
5. Emergency inspections and investigations into accidents and complaints in accordance with sections 2.8 and 2.12.
6. After hours testing performed in accordance with sections 2.8 and 2.12.

2.14.2 **Annual Assessments by City**.

During the term of the Contract, the City will continuously review the work performed by the Contractor using the review and audit capabilities of the City's designated software applications.

2.15 **Use of City-Provided Electronic Devices.**

A. As further set forth in this Statement of Needs, the Contractor is required to utilize electronic devices provided by the City for documentation of inspection and plan review results, submission of results, and other activities set forth in this Statement of Needs. The Contractor shall only use the equipment made available by the City for the performance of obligations under the Contract.

B. All City owned electronic devices shall be signed out through the City's Department of Information Technology (DIT).

C. The Contractor shall bear the responsibility for any loss or damage to any City-owned equipment made available to the Contractor pursuant to the Contract, including the electronic devices.

D. The Contractor shall, throughout the term of the Contract, have available for the Contractor's use both a cellular data hotspot and a wifi connection to enable the Contractor to utilize the electronic devices provided by the City.

E. Within fourteen (14) calendar days of the Commencement Date of the Contract, the Contractor shall contact the City to schedule training and orientation to be provided by the City for the Contractor on the electronic devices to be provided by the City and the software applications to be used by the Contractor. The Contractor's personnel assigned to perform work for the City under the Contract shall attend eighty (80) hours of training and orientation provided by the City, unless the City notifies the Contractor in writing that the Contractor has demonstrated satisfactory familiarity, use, and understanding of the electronic devices and software application. The Contractor shall not permit the Contractor's personnel to use the electronic devices in the performance of services under this Contract until such personnel have completed training in the use of such devices.

F. Within 24 hours of the effective date of termination of this Contract, the Contractor shall return to the Building Commissioner, or their designee, all electronic devices provided by the City to the Contractor pursuant to this Contract.

2.16 **Rejection of Work.**

The City reserves the right to reject incomplete inspection or plan review reports or incorrect inspection or plan review reports, and the Contractor shall re-inspect, review again, or re-submit the incomplete or incorrect work within five business days of the Contractor's receipt of notice from the City.

3.0 **Proposal Contents.**

The proposal must include all of the information set forth in this section and be organized as set forth in this section. In addition to the original, the offeror shall submit (i) ten complete, bound paper copies of its proposal and (ii) electronic copies in a portable document format readable by the Adobe Reader program and in a Microsoft Word format that can be searched and edited.

3.1 **Tab 1 – Signed Forms.** This tab should include the completed and signed Signature Sheet, Addenda Acknowledgement, State Corporation Commission Form, and Office of Minority Business Development Forms included with this Request for Proposals.

3.2 **Tab 2 – Statement of the Scope.** In concise terms, state the Offeror's understanding of the scope of work presented by the Request for Proposals.

3.3 **Tab 3 – Executive Summary.** This tab should provide a brief summary of the proposal's contents, emphasizing any unique aspects or strengths of the proposal. The Executive Summary should not exceed three pages.

3.4 **Tab 4 – Key Personnel.** This tab should include the résumés or curriculum vitae of the offeror's key staff members. It should identify the number of specific employees assigned to provide the services solicited by this Request for Proposals, including the Offeror's primary technical supervisor, quality control inspector, supervisor, and other key technical personnel. For each key person identified by the offeror, this tab should include the following information, provided in résumé format:

A. Name and title
B. Office location and city of residence
C. Project responsibilities and roles
D. Educational background
E. Professional registrations, approved NAESA certification with QEI license number or equivalent licensing through Work Preservation Fund, and memberships
F. Years of relevant experience

3.5 **Tab 5 – Offeror History.** This tab should include a comprehensive narrative history of the Offeror's firm, including the development of experience and extensive knowledge in elevator inspections specific to the capacity requested in this RFP and the depth of resources to provide the elevator inspection services solicited by this Request for Proposals. This section of the proposal must contain the following organizational information and data for the Offeror's organization:

A. If a corporation:
   1. The state of incorporation;
   2. The date of incorporation;
   3. The principal place of business;
   4. The Federal I. D. number;
   5. Whether the corporation is a Subchapter S corporation.
   6. The name, position, address, and number of years in position of each officer and director; and
   7. The names of any affiliates, partner corporations, and subsidiaries.

B. If a limited liability company:
   1. The state in which the limited liability company is organized;
   2. The date organized;
   3. A list of all managers of the limited liability company, including the name, telephone number, and years as a manager for each manager; and

4. A list of all members of the limited liability company, including the name, telephone number, years as a member, and membership interest for each member.

C. If a partnership:
   1. The state in which the partnership was formed;
   2. The date formed;
   3. The type of partnership; and
   4. A list of all general and limited partners, as applicable, including the name, telephone number, years as a partner, and partnership interest for each partner.

D. If a joint venture:
   1. Date of formation;
   2. Name and address of each joint venture partner;
   3. The name and address of the principals of each joint venture partner; and
   4. The percentage of interest of each joint venture partner.

E. If the Offeror is not a corporation, limited liability company, partnership, or joint venture, this tab must identify the type of business entity and provide any pertinent information.

F. This tab should provide the Offeror's total number of employees.

G. This tab should state whether the Offeror has operated under another name within the past ten years and, if so, the other name, the number of years in business under this other name, and the State Corporation Commission identification number under this name.

H. This tab must state whether the Offeror is a subsidiary or affiliate of another organization and, if so, the name and address of each parent or affiliate organization.

I. This tab must include the following statement, signed by the Offeror's contractually binding authority:

By submitting its proposal, {Insert Legal Name of Offeror} (the "Offeror") certifies and represents that the information that the Offeror provides in response to this Request for Proposals is accurate and complete as of the date of such submission. If the Offeror provides no information in response to any of the requirements of this Request for Proposals, then the Offeror, by submitting its proposal, certifies

and represents that such requirements do not apply because no information exists that would respond to the requirement. The Offeror further covenants that, during the time between the submission of its proposal and the City's announcement of its decision to award the Contract, the Offeror will furnish the City with any changes or additions to such information necessary to ensure that this information remains accurate, complete and up-to-date.

3.6 **Tab 6 – References.** This tab should include the names, addresses and telephone numbers of at least five other local governments with whom offeror has worked during the last five years. The tab should briefly identify the project, location and services performed. The tab should also include an affirmative statement that the offeror grants its consent for the City to contact the offeror's references for purposes of evaluating the offeror and acknowledges that any information obtained from the offeror's references will not be disclosed to the offeror.

3.7 **Tab 7 – Project Approach**. This tab should describe in detail the offeror's proposal for providing the elevator inspection services solicited by this Request for Proposals.

A. The Offeror must include an organizational chart showing supervisors, inspectors, and quality control personnel and clearly identify personnel who will be employed full-time or part-time.

B. The Offeror must explain how it will meet the requirements set forth in section 2.15 that addresses use of City-provided electronic devices.

C. The Offeror must explain how it will comply with the requirement set forth in section 2.1(C) regarding employment of a licensed elevator QEI Certified supervisor.

D. The Offeror must explain how it will meet the requirement set forth in sections 2.8 and 2.12 regarding response times.

E. The Offeror must explain how it will meet the requirements set forth in section 2.7 regarding plan reviews.

F. The Offeror must explain how it will comply with the quality control requirements set forth in section 2.6.

G. The Offeror must provide sample invoices meeting the requirements of section 2.13 and explain how the Offeror will meet the invoice requirements.

3.8 **Tab 8 – Offeror Qualifications**. The offeror shall describe their qualifications and experience in the performance of testing and inspections of Elevating Equipment. The offeror should demonstrate a minimum of 5 years of direct experience with the inspection and testing of Elevating Equipment similar to the required services being solicited in this Request for Proposals.

3.9 **Tab 9 – Subcontracting.** This tab should identify any of the required services that you intend to subcontract, if any, providing the following information:

A. Reasons for subcontracting.

B. Proposed subcontractor responsibilities.

C. Identity of proposed subcontractors including location, relevant personnel and experience, previous use as a subcontractor, and any other relevant supporting information.

3.10 **Tab 10 – Pricing Schedule.** The offeror must submit pricing for the services solicited in this Request for Proposals using Exhibit 1 ("Pricing Schedule").

4.0 **Evaluation Criteria.** The Evaluation Committee will use the following evaluation criteria in ranking and selecting offerors for negotiation pursuant to this Request for Proposals:

Available Points

A. Experience..... **20 Pts.**

B. Technical Capability ..... **15 Pts.**

C. Compliance with Requirements..... **10 Pts.**

D. Cost (allowed by City Code § 21-67(e))..... **20 Pts.**

E. Accessibility (required by City Code § 21-69)..... **5 Pts.**

F. MBE / ESB Commitment .....**30 Pts.**

In accordance with City Code § 21-67(e), this criterion considers the offeror's "good faith minority business enterprise and emerging small business participation efforts" as defined in City Code § 21-4. Pursuant to City Code § 21-67(e), an offeror must receive at least 15 points under this criteria in order to be selected for negotiations, unless granted a waiver by the Chief Administrative Officer. The MBE/ESB participation goal for this contract is 0**%**. See sections 2.4 of the Instructions to Offerors and 2.6.2 and 3.9 of the General Terms and Conditions for the MBE/ESB provisions.

Total Available Evaluation Points ..... **100 Pts.**

END OF STATEMENT OF NEEDS

PART II
INSTRUCTIONS TO OFFERORS

1.0 **Interpretations.**

1.1 **Incorporation of City Policies and Procedures.** This Request for Proposals is subject to the provisions of Chapter 21 of the Code of the City of Richmond, as amended, and the Policies and Procedures of the Department of Procurement Services, as amended, which are hereby expressly incorporated into this Request for Proposals by reference. Offerors may inspect copies of these documents at the City's website, www.RichmondGov.com.

1.2 **Explanations to Offerors.**

1.2.1 **Inquiry.** All inquiries requesting clarification of this Request for Proposals should be made in writing no later than ten business days prior to the closing date to the Contracting Officer identified on the cover sheet of this Request for Proposals. If submitting an inquiry by electronic mail or facsimile transmission, the offeror should notify the Contracting Officer by telephone that the person is sending the inquiry by that means. All inquiries should clearly state the number of this Request for Proposals. Because each offeror may have different needs for information, that offeror must make whatever inquiries it deems necessary in order to respond to the Request for Proposals. Inquiries that the Contracting Officer determines to be pertinent to all solicited contractors will be answered by addenda to all solicited firms.

1.2.2 **Form of Explanation.** No oral explanation in regard to the meaning of this Request for Proposals will be made and no oral instructions will be given before the award of the contract. Any explanation, interpretation or modification of the Request for Proposals that is pertinent to all solicited offerors will be made only by an addendum duly issued by the City, a copy of which will be mailed or delivered to each offeror known to have received the Request for Proposals. The City shall not be responsible for any other explanations or interpretations anyone presumes to make on behalf of the City before the expiration of the ultimate time set for the receipt of proposals.

1.2.3 **Addenda.** From time to time, addenda may be issued that will provide clarifications or supplemental information about the Request for Proposals documents. All firms receiving Request for Proposals documents issued by the City will be provided copies of addenda. If an offeror fails to acknowledge any addendum that (i) has a material effect on the proposal (i.e., that relates to price, quantity, quality or delivery) and (ii) is not merely administrative, the City may consider that offeror's proposal incomplete, and the proposal thus may be rejected or receive a lower score in the evaluation process. The offeror shall acknowledge receipt of all addenda as part of its proposal and on the form provided for that purpose by the City. The offeror shall be solely responsible for verifying the existence of all addenda items.

1.3 **No Contact Policy.** Any contact with any City officer, employee, agent, or other representative concerning this Request for Proposals other than that outlined in section 1.2

("Explanation to Offerors") above is prohibited. Any such unauthorized contact may disqualify the offeror from this procurement.

1.4 **Other Documents.** The Statement of Needs, the General Terms and Conditions, and any Special Terms and Conditions attached to this Request for Proposals are hereby expressly made a part of and incorporated into this Request for Proposals. The General Terms and Conditions and any Special Terms and Conditions shall be a part of any contract that results from this Request for Proposals. This Request for Proposals also includes a sample of the City's form contract as an attachment. All conditions contained in this attached contract are hereby expressly made a part of and incorporated into this Request for Proposals.

1.5 **Disqualification Due to Participation in Preparation of Solicitation.**

1.5.1 **Prohibition.** City Code § 21-281(a) prohibits any person who, for compensation, prepares a solicitation for or on behalf of the City from submitting a response to that solicitation or any portion thereof.

1.5.2 **Definition.** For purposes of this section 1.5 ("Disqualification Due to Participation in Preparation of Solicitation"), the word "prepares" has the meaning set forth in City Code § 21-281(b) and thus includes but is not limited to the following:

(1) Serving as a director or deputy director of the agency which has initiated the procurement;

(2) Serving as the director of procurement services after the department of procurement services has received information on an agency's intent to procure;

(3) Serving as the procurement manager for the agency which has initiated the procurement;

(4) Serving as the procurement officer in charge of the procurement;

(5) Assisting in the development of specifications for invitations for bids or requests for proposals;

(6) Attending an evaluation committee meeting that is closed to the public;

(7) Voting on or scoring a bid or proposal; or

(8) Any other participation in the procurement process which could lead to unfair advantage.

1.5.3 **Disqualification and Waiver.** Pursuant to City Code § 21-281(c), the Chief Administrative Officer shall make the determination that a person is disqualified from submitting a response to a particular solicitation because of that person's participation in preparing that solicitation.

1.5.4 **No Contact Policy Applicable.** If a person planning to submit a response to a solicitation contacts the Chief Administrative Officer concerning such a disqualification, such person and the person's firm shall be disqualified from responding to the solicitation for violating the City's no contact policy because the person discussed the solicitation with a City representative other than the Contracting Officer responsible for the procurement.

1.5.5 **Appeal of Disqualification.** In accordance with City Code § 21-281(d), any person who has been disqualified pursuant to this section 1.6 ("Disqualification Due to Participation in Preparation of Solicitation") and City Code § 21-281 may appeal the Chief Administrative Officer's determination of disqualification by following the administrative appeals procedure set forth in City Code § 21-168 or by instituting legal action as provided in City Code § 21-169.

2.0 **Preparation of Proposals.**

2.1 **General Requirements.** The proposal must be typed and bound and should be presented as described in the paragraphs that follow. All pages in the proposal must be consecutively numbered. To be considered substantive, the proposal must respond to all requirements of this part of the Request for Proposals. Information supplied must be current and up to date. Any other information thought to be relevant, but not applicable to the enumerated categories, should be provided as an appendix to the proposal. If the offeror supplies publications to respond to a requirement, the response must include reference to the document number and page number to provide a quick reference for the evaluation panel. Proposals not providing this reference will be considered to have no reference included in the additional documents. The proposal must include all the information defined below and be organized as set forth in the Statement of Needs.

2.2 **Substantive Nature of Proposals.** Proposals must be substantive. It is not sufficient for the offeror to address the proposal in general terms or in terms other than those outlined in this Request for Proposals. Proposals should be prepared simply and economically, providing a straightforward, concise description of the offeror's ability to meet the requirements set forth in the Request for Proposals.

2.3 **Authorized Signature.** All proposals must be signed in order to be considered. If the offeror is not an individual or a sole proprietor but rather a corporation or any other type of legal entity, the offeror must show the title of the individual executing the proposal and a resolution or other documentation clearly establishing the authority of the individual to sign the proposal and any subsequent contract.

2.4 **MBE/ESB Participation.** When the City of Richmond establishes a goal for MBE/ESB participation on a city project, all minority and non-minority prime contractors/vendors are required to have MBE/ESB participation.

2.4.1 **Policy.** It is the policy of the City to encourage minority participation on all City contracts. To advance this policy, the City encourages minority participation through subcontracting, joint ventures, or other methods in contracting for services.

2.4.2 **Certification.**

A. All Minority Business Enterprise subcontractors and vendors must be registered with the City of Richmond's Office of Minority Business Development (OMBD) and certified by the Commonwealth of Virginia Department of Minority Business Enterprise or a comparable certifying entity as a Minority Business Enterprise. OMBD reserves the right to accept the certification of other certifying agencies.

B. All Emerging Small Business subcontractors and vendors must be certified by the City of Richmond's Office of Minority Business Development (OMBD).

2.4.3 **Evaluation.**

A. In the proposal evaluation process, up to 30 points will be given to those proposals that have documented past good faith efforts and have proposed MBE/ESB participation that relate to the established goal. All MBE/ESB forms that relate to this matter must be included in the prime contractors/vendors response. All documentation as it relates to past good faith efforts and proposed MBE participation must be submitted on the required forms in order to expedite the evaluation process. We have attached the Participation Commitment and the Current and Past Good Faith Effort forms for completion. The offeror should complete all pertinent MBE/ESB forms or risk forfeiting the 30 points assigned to Minority Business Enterprise and Emerging Small Business participation.

B. The City of Richmond encourages MBE/ESB participation on all City of Richmond contracts. If the City of Richmond waives the setting of goals, it is up to the prime contractor/vendor to determine whether or not they will voluntarily have MBE/ESB participation. Voluntarily committing to MBE/ESB participation allows the prime contractor/vendor to use this commitment as past good faith efforts for credit on future projects that have MBE participation with the City. When presenting MBE/ESB participation, use the forms created by the Office of Minority Business Development (OMBD) (MBE-1, MBE-2 and Good Faith Effort) in order to properly document your participation efforts.

2.5 **Faith-Based Organizations.** The City does not discriminate against faith-based organizations. By signing its proposal, the offeror, if a faith-based organization, agrees that it understands the requirements of City Code § 21-43 (Va. Code § 2.2-4343.1).

2.6 **Licenses, Permits and Fees.** All proposals submitted shall have included in the prices submitted the cost of any business or professional licenses, permits or fees required by the City of Richmond or the Commonwealth of Virginia.

2.7 **Public Inspection of Records.**

2.7.1 **In General.** All proceedings, records, contracts and other public records relating to the procurement transaction that this Request for Proposals concerns shall be open to the inspection of any citizen of the Commonwealth of Virginia or any representative of a media organization with circulation in or that broadcasts in or into the Commonwealth of Virginia in accordance with the Virginia Freedom of Information Act.

2.7.2 **Inspection by Offerors.** Any offeror, upon request, shall be afforded the opportunity to inspect proposal records within a reasonable time after the evaluation and negotiations of proposals are completed, but prior to award, except in the event that the City decides not to accept any of the proposals and to reopen the contract. Otherwise, proposal records shall be open to public inspection only after award of the contract.

2.7.3 **Proprietary Information.** Pursuant to City Code § 21-5(f) (Va. Code § 2.2-4342(F)), trade secrets or proprietary information submitted by an offeror in connection with this procurement transaction shall not be subject to the Virginia Freedom of Information Act, provided that the offeror (i) invokes the protections of section 21-5 of the Code of the City of Richmond prior to or upon submission of the data or other materials, (ii) identifies the data or other materials to be protected, and (iii) states the reasons why protection is necessary. Classifying aspects of the proposal that are not trade secrets or proprietary is cause for the City to reject the proposal. Budgets and price quotations are considered public information in proposals submitted to the City. Classifying budgets and price quotations as "proprietary" or "confidential" is cause for the City to reject the proposal.

2.8 **Use of Brand Names.** Where a brand or trade name appears in the Request for Proposals, it is understood that the brand or trade name referred to, or its approved equal, shall be furnished. If the offeror proposes similar but not identical items, it must furnish full particulars. If no mention is made of any exceptions, it is assumed that the offeror's pricing is for the article mentioned and not an approved equal, and the offeror will be required to deliver the exact article specified. The City shall decide, in its sole discretion, if a proposed equal will be approved.

2.9 **Descriptive Literature.** Each offeror shall submit with its proposal descriptive literature of equipment or supplies that the offeror proposes to furnish if such articles are of a different manufacture than those specified in this Request for Proposals. Should the description furnished in such literature differ from the specifications submitted by the City and should no mention be made to the contrary, the description shall be construed to mean that the offeror proposes to furnish equipment or supplies in accordance with such description and not in accordance with the City's specifications, and the City will evaluate the offeror's proposal accordingly.

2.10 **Exceptions.**

A. An exception is any condition, limitation, qualification, restriction, term, or other deviation from the requirements of the Request for Proposals that is a condition of

the offeror's proposal or that the offeror expects to become part of a contract with the City. Offerors are neither required nor encouraged to take exceptions to the requirements of the Request for Proposals. In some cases, where permitted by law, exceptions may count against an offeror during the evaluation stage or the negotiation stage of the procurement process.

B. The offeror shall state in its proposal each exception, including the page number, the part and section numbers, the specific text at issue, and the nature of the exception, except as follows:

1. If the Request for Proposals is one for "information technology" as defined in Va. Code § 2.2-2006, the offeror shall not state in its proposal any exception to any liability provisions contained in the Request for Proposals. Instead, if the offeror is selected for negotiations, the offeror shall state any exception to any liability provisions contained in the Request for Proposals in writing, including all of the information required by this section, at the beginning of negotiations.

2. If the Request for Proposals is one for architectural or professional engineering services, the offeror shall not state in its proposal any exception to any proposed contractual term or condition unless such term or condition is required by statute, regulation, ordinance, or standards developed pursuant to Va. Code § 2.2-1132 until after the qualified offerors are ranked for negotiations. If the offeror is selected for negotiations, the offeror shall state any exception to any proposed contractual term or condition contained in the Request for Proposals in writing, including all of the information required by this section, at the beginning of negotiations.

C. If the offeror fails, neglects, or refuses to note any exception in the manner and at the time required by this section, the offeror agrees that it shall comply with the Request for Proposals as originally issued and modified by any addenda.

3.0 **Warranties and Representations of Offeror.**

3.1 **Compliance with Request for Proposals Documents.** By signing its proposal in response to this Request for Proposals, the offeror warrants and represents that the offeror is in compliance with all terms and conditions of this Request for Proposals.

3.2 **Ethics in Public Contracting** By signing its proposal in response to this Request for Proposals, the offeror warrants and represents that (i) it has not violated any provisions of federal law, the Code of Virginia, the Charter of the City of Richmond, or the Code of the City of Richmond, (ii) its proposal is made without any understanding, agreement, or connection with any other person, firm, corporation, or joint venture making a proposal for the same purposes, and is in all respects fair and without collusion or fraud, (iii) it has not offered or received any kickbacks or inducements from any other contractor, supplier, manufacturer or subcontractor in connection with its proposal and (iv) it has not conferred

on any public employee having official responsibility for this procurement transaction any payment, loan, subscription, advance, deposit of money, services or anything of more than nominal value, present or promised, unless consideration of substantially equal or greater value was exchanged. The offeror further warrants and represents that no officer, employee or other person whose salary is payable in whole or in part by the City is, shall be, or become interested, directly or indirectly, as a contracting party, partner, stockholder, surety or otherwise, in this proposal, in the performance of the contract, in the supplies, materials, or equipment and work or labor to which it relates, or in any portion of the profits thereof. In addition, the offeror warrants and represents that the provisions of City Code §§ 21-274—21-285 (Va. Code §§ 2.2-4367—2.2-4377) pertaining to offerors, contractors and subcontractors apply to this Request for Proposals and any resulting contract. The offeror agrees that if these warranties and representations are in any respect breached, such breach shall constitute a material breach of any contract that the City may award to the offeror and the offeror shall pay to the City the full price agreed by the City to be paid for the supplies, materials, equipment or services to be furnished under its proposal.

3.3 **Lawful Age and No Others Have Interest.** By signing its proposal in response to this Request for Proposals, the offeror represents that the offeror is of lawful age and that no other person, firm, corporation or joint venture has any interest in this proposal or in the contract proposed to be entered into.

3.4 **No Debts to City.** By signing its proposal in response to this Request for Proposals, the offeror warrants and represents that it is not in arrears to the City, upon debt or contract; is not a defaulter, as surety or otherwise, upon any obligation to the City; and has not been delinquent or unfaithful in any former contract with the City.

3.5 **Offeror Not Debarred.** By signing its proposal in response to this Request for Proposals, the offeror warrants and represents that neither its organization nor any of its officers, directors, partners or owners is currently barred from bidding on contracts by any agency of the federal government, any agency of the Commonwealth of Virginia, any agency of any other state, or any other public body or agency thereof.

3.6 **No Kickbacks or Conflicts of Interest.** By signing its proposal in response to this Request for Proposals, the offeror represents and warrants that it is in compliance with the provisions of section 2.3 ("Anti-Kickback Provision") of the General Terms and Conditions included with this Request for Proposals and, further, that the offeror's firm has no business or personal relationships with any other companies or persons that could be considered as a conflict of interest or potential conflict of interest to the City, and that there are no principals, officers, agents, employees, or representatives of the offeror's firm that have any business or personal relationships with any other companies or persons that could be considered as a conflict of interest or a potential conflict of interest to the City, pertaining to any and all work or services to be performed as a result of this Request for Proposals and any resulting contract with the City.

3.7 **State Corporation Commission Registration.**

3.7.1 **Generally.** State law requires most business entities to register with the Commonwealth of Virginia's State Corporation Commission to obtain legal authorization to transact business in Virginia. A contractor organized as a stock or nonstock corporation, limited liability company, business trust, or limited partnership or registered as a registered limited liability partnership shall be authorized to transact business in the Commonwealth as a domestic or foreign business entity if so required by Title 13.1 or Title 50 of the Code of Virginia or as otherwise required by law. Any business entity described above that enters into a contract with the City shall not allow its existence to lapse or its certificate of authority or registration to transact business in the Commonwealth, if so required under Title 13.1 or Title 50, to be revoked or cancelled at any time during the term of the contract.

3.7.2 **Form Required.** Each offeror organized or authorized to transact business in the Commonwealth of Virginia pursuant to Title 13.1 or Title 50 of the Code of Virginia shall include in its proposal the identification number issued to it by the State Corporation Commission. Any offeror that is not required to be authorized to transact business in the Commonwealth as a foreign business entity under Title 13.1 or Title 50 of the Code of Virginia, or as otherwise required by law, shall include in its proposal a statement describing why the offeror is not required to be so authorized. Each offeror shall indicate the above information on the State Corporation Commission Form included with the Request for Proposals.

3.7.3 **Warranty.** By signing its proposal in response to this Request for Proposals, the offeror represents and warrants that all information the offeror submits on its completed State Corporation Commission Form is true and complete at the time the offeror submits its proposal and will remain true and complete throughout the duration of any contract between the City and the offeror that results from this Request for Proposals. The offeror agrees that the process by which compliance with Title 13.1 and Title 50 of the Code of Virginia is checked during the solicitation stage (including without limitation the State Corporation Commission Form provided) is streamlined and not definitive, and the City's use and acceptance of such form, or its acceptance of the offeror's statement describing why the offeror was not legally required to be authorized to transact business in the Commonwealth of Virginia, shall not be conclusive of the issue and shall not be relied upon by the offeror as demonstrating compliance.

4.0 **Submission of Proposals.**

4.1 **Copies.** Offerors shall submit an original proposal, clearly identified as such and signed in blue ink by the offeror's contractually binding authority. In addition, offerors shall submit additional copies of their proposals in such number and such electronic and paper formats as may be specified in the Statement of Needs.

4.2 **Labeling.** All proposals must be sealed and labeled (on the outside of the sealed container), with the label displaying the following information:

Proposal for
Request for Proposals No.
Name of offeror

Address of offeror
Receipt and Closing Date:

4.3 **Recipient.** All proposals are to be addressed and delivered by the date and time specified on the Cover Sheet to the Contracting Officer identified on the Cover Sheet.

4.4 **Transmittal Letter.** The proposal should include a transmittal letter that lists the following:

Firm's Name
Firm's Address
Contact Name and Telephone Number
Fax Number and E-mail Address

4.5 **Closing Date.** To be considered, a proposal must arrive at the address set forth in section 4.3 ("Recipient") on or before the time and date set forth on the Cover Sheet to this Request for Proposals. The City will not accept a proposal that is late. Offerors mailing proposals should allow sufficient mail delivery time to ensure timely receipt of their proposals. The offeror shall not make any other distribution of proposals. However, materials or information received from a prospective contractor as result of a request by the Contracting Officer shall not be considered a violation of this section.

4.6 **Multiple Proposals.** An offeror may submit more than one proposal. At least one of the proposals should be complete and should comply with all of the instructions contained in this Request for Proposals. Additional proposals may be in abbreviated form following the same format and providing only the information that is different from that in the complete proposal.

4.7 **Separate Proposals.** Proposals for separate Requests for Proposals shall not be combined on the same form or placed in the same envelope. At its option, the City may decline to consider such proposals.

4.8 **Return of Proposal.** All proposals submitted pursuant to this Request for Proposals will become the property of the City and will not be returned.

5.0 **Evaluation and Selection Process.**

5.1 **Opening.** At the designated time and date, the Department of Procurement Services will open and list the proposals for the record. This is not a public opening. The proposals will then be forwarded to the using agency and evaluation panel to initiate the review and selection process. Proposals received after the date and time specified in section 4.5 ("Closing Date") are late and will be returned unopened at the offeror's expense.

5.2 **Evaluation.** During the evaluation phase, an evaluation panel will review and score the proposals in accordance with the evaluation criteria set forth in the Request for Proposals. Some offerors may be eliminated at this stage. Once the evaluation panel has completed this initial scoring, the evaluation panel may engage in discussions with offerors not eliminated by the initial scoring to clarify specific matters presented in those offerors' proposals.

Discussions may include oral interviews or presentations or written communications as specified in the Request for Proposals or, if not so specified, at the sole discretion of the City. The evaluation panel will use information gained during these discussions together with information presented in the proposal to rank offerors in accordance with the evaluation criteria stated in the Request for Proposals. The evaluation panel reserves the right to visit the premises of the offeror if the evaluation panel determines that it is necessary to do so.

5.3 **Samples.** The offeror shall furnish the City with samples of items, if requested, without charge, upon request and within ten calendar days of such request. The offeror's failure to provide such samples within the specified time frame or to otherwise comply with this section shall be sufficient cause for the City, at its sole option, to reject the offeror's proposal. If not destroyed and upon request at the time of submission, the City will return samples at the offeror's expense.

5.4 **Tests.** The City reserves the right to conduct any test it may deem advisable and to make all evaluations necessary.

5.5 **Negotiation with Offerors.**

5.5.1 **In General.** The City may undertake negotiations with offerors whose proposals show them to be qualified, responsible and capable of performing the work in accordance with the stated criteria.

5.5.2 **Procedure.** Unless the Director of Procurement Services determines that only one offeror is fully qualified or that one offeror is clearly more highly qualified than the others under consideration, selection shall be made of two or more offerors deemed to be fully qualified and best suited among those submitting proposals, on the basis of the factors involved in the Request for Proposals, including price if so stated in the Request for Proposals. Negotiations shall then be conducted with each of the offerors so selected. (*See* City Code § 21-67.)

6.0 **Award and Execution of Contract.**

6.1 **Award.**

6.1.1 **In General.** The City will make the award to the responsible and responsive offeror whose proposal is determined in writing to be the most advantageous to the City, taking into consideration price and the evaluation factors set forth in this Request for Proposals.

6.1.2 **Multiple Awards.** The City reserves the right to make awards under this Request for Proposals to more than one offeror if the City determines that doing so is in the best interests of the City. If the City makes multiple awards under this Request for Proposals, each contract awarded will specify the portion of the scope of services awarded to that offeror.

6.2 **Rejection of Proposals.** The City reserves the right to reject any or all proposals, in whole or in part, and to delete items prior to making the award, whenever it is deemed in the sole opinion of the City to be in its best interest.

6.3 **Nondiscrimination in Award.** The City shall not discriminate against any offeror in the solicitation or award of a contract based on this Request for Proposals because of race, religion, color, sex, national origin, age, disability, faith-based organizational status or any other basis prohibited by state law relating to discrimination in employment or because the offeror employs ex-offenders unless the using agency has made a written determination that employing ex-offenders on the specific contract is not in its best interest.

6.4 **Notice of Award.** A contract is awarded only when the Director of Procurement Services signs the contract. The Contracting Officer may provide notice of the City's decision to award a contract prior to award of that contract by posting a notice of intent to award on the website of the Department of Procurement Services. A notice of intent to award means that the City intends to award the contract to the offeror named in the notice ten calendar days after the notice is posted. Offerors are responsible for monitoring the website of the Department of Procurement Services for content posted thereon.

6.5 **Contractual Obligation.** The proposal submitted by the selected contractor and this Request for Proposals shall become an attachment to the contract signed by the City and the selected offeror. Price quotations and other time-dependent information contained in proposals should be valid for a minimum of 90 days from the closing date of this Request for Proposals. The City may undertake negotiations with offerors whose proposals show them to be qualified, responsible and capable of performing the work in accordance with the stated criteria. The City shall not be liable for any costs incurred by offerors in connection with the preparation or submission of proposals and related materials or negotiations.

6.6 **When Contractual Obligation Arises.** No contract shall result from the submission of any proposal and no liability shall accrue with respect thereto until a written contract and any other necessary documents have been fully and completely executed by both the successful offeror and the City.

6.7 **Contract Execution Requirements.** Upon notice of the award of a contract pursuant to this Request for Proposals, the successful offeror shall sign the final contract document, a sample of which is included with this Request for Proposals, upon receipt thereof from the Contracting Officer, register in the City's online Supplier Portal, and furnish the insurance documents required by the General Terms and Conditions included with this Request for Proposals. The offeror shall furnish the City with the signed contract and the required insurance documents and must have registered in the City's online Supplier Portal within 15 calendar days after the date of the notice of award or within such further time as the City may allow. Once the City has received the signed contract and insurance documents from the successful offeror, the City's representative will then sign the contract. The signature of the City's representative on the contract constitutes the award of the contract.

END OF INSTRUCTIONS TO OFFERORS

PART III
GENERAL TERMS AND CONDITIONS

1.0 **Duration of Contract.**

1.1 **Commencement and Expiration.** This Contract shall commence on the Commencement Date set forth in the Goods and Services Contract and shall expire two (2) years later, unless terminated earlier in accordance with the provisions of this Contract.

1.2 **Extension of Contract.** The City reserves the right to extend the Contract for any reason for a period or periods up to but not to exceed 12 months. This extension clause may be exercised when the City determines that an extension of the Contract is advantageous to the City. Any extension beyond 12 months will be subject to section 1.3 ("Renewal"). This provision in no way affects or alters the ability of the City to renew the Contract consistent with section 1.3 ("Renewal"). If it is then decided to renew the Contract, the renewal date will commence on the day following the last day of the contract extension.

1.3 **Renewal.** The City may, at its sole option, renew this Contract for up to two (2) - two (2) year renewal terms by furnishing the Contractor with written notice of its decision to renew the Contract at least 60 calendar days before the expiration of the preceding term.

2.0 **Contractor Responsibilities.**

2.1 **Independent Contractor.** The Contractor shall provide the services required under this Contract as an independent contractor.

2.2 **Advertising.** The Contractor shall not use any indication of its services to the City for commercial or advertising purposes. However, the Contractor may list the City as a reference account for prospective customers.

2.3 **Anti-Kickback Provision.** The Contractor warrants that it has not employed or retained any company or person other than a bona fide employee working solely for the Contractor to solicit or secure this Contract and that it has not paid or agreed to pay any company or person other than a bona fide employee working solely for the Contractor any fee, commission, percentage, brokerage fee, gifts or other consideration contingent upon or resulting from the award or making of this Contract. For breach or violation of this warranty, the City shall have the right to annul or void this Contract without liability or, in its sole discretion, to deduct from the contract price or consideration, or otherwise recover the full amount of such fee, commission, percentage, brokerage fee, gift or contingent fee.

2.4 **Century Compliance.** The Contractor warrants that the hardware, software and firmware products, provided for use by the City or used by the Contractor to provide

any service or commodity that is the subject of this Contract, individually and in combination, shall successfully process, store and perform calculations with dates regardless of the century in which the dates occur.

2.5 **Compliance with Laws.** The Contractor shall comply with the provisions of any statutes, ordinances, rules, regulations, or other laws enacted or otherwise made effective by any local, state, or federal governmental entity which may be applicable to the performance of this Contract and shall obtain all necessary licenses and permits thereunder.

2.6 **Contractor Misrepresentation.**

2.6.1 **In General.** If the Contractor knowingly makes a material misrepresentation in submitting information to the City, such misrepresentation will be sufficient grounds for rescinding the award of this Contract.

2.6.2 **MBE/ESB Participation.** By issuing the Request for Proposals, the City intends that MBE / ESB participation proposed as part of any proposal in response hereto be binding on the Contractor. Consequently, if the Contractor falsely representing proposed MBE/ESB participation, or failing to comply with proposed participation, may be in breach of contract**.** Upon determination of a breach, the City shall have all available remedies for breach of contract, which may include, but is not limited to, one or more of the following: (i) forfeiture, (ii) investigation, and (iii) debarment.

2.7 **Drug-Free Workplace.**

2.7.1 **Policy.** City Council Resolution No. 2000-R197-191 prohibits the City from contracting with any contractor that fails to comply with this policy. The Contractor certifies that it has taken and will continue to take appropriate and effective action to (i) educate its employees about the dangers of drug abuse in the workplace, (ii) provide its employees with effective drug counseling, rehabilitation and employee assistance programs, any or all, (iii) discipline employees who violate the requirement of a drug-free workplace, and (iv) minimize, to the greatest extent possible, the risks of drugs entering the workplace. The Contractor is also prohibited from contracting with any other party that fails to comply with this policy. Failure by the Contractor or its subcontractor to comply with the provisions outlined above will be cause for termination of the Contract.

2.7.2 **Contractor's Plan.** The Contractor shall implement and maintain a Drug-Free Workplace Plan specific to the services and work covered by this Contract that is implemented and effectively used throughout the duration of this Contract to accomplish the requirements of section 2.7.1 ("Policy") above.

2.8 **Human Rights.**

2.8.1 **Civil Rights Act Compliance.** During the performance of this Contract, the Contractor agrees, pursuant to Resolution No. 74-R8-11 adopted February 25, 1974 by the Council of the City of Richmond, to comply fully with Titles VI and VII of the Civil Rights Act of 1964, as amended, and all regulations promulgated thereunder.

The essence of this requirement is found in the United States Code Annotated, Title 42, Section 2000e-2, which states in part:

"a. It shall be an unlawful employment practice for an employer:

(1) to fail or refuse to hire or to discharge any individual, or otherwise to discriminate against any individual with respect to his compensation, terms, conditions, or privileges of employment, because of such individual's race, color, religion, sex, or national origin; or

(2) to limit, segregate, or classify his employees or applicants for employment in any way which would deprive or tend to deprive any individual of employment opportunities or otherwise adversely affect his status as an employee, because of such individual's race, color, religion, sex or national origin."

By entering into this Contract, the Contractor certifies that it has complied with Titles VI and VII of the Civil Rights Act of 1964, as amended.

2.8.2 **Richmond City Code Compliance.** Pursuant to section 21-70 of the Code of the City of Richmond (2004), as amended:

(a) During the performance of this Contract, the Contractor agrees as follows:

(1) The Contractor shall not discriminate against any employee or applicant for employment because of race, religion, color, sex, national origin, age, disability, or other basis prohibited by state law relating to discrimination in employment, except where there is a bona fide occupational qualification reasonably necessary to the normal operation of the Contractor. The Contractor agrees to post in conspicuous places, available to employees and applicants for employment, notices setting forth the provisions of this nondiscrimination clause.

(2) The Contractor, in all solicitations or advertisements for employees placed by or on behalf of the Contractor, shall state that such Contractor is an equal opportunity employer.

(3) Notices, advertisements and solicitations placed in accordance with federal law, rule or regulation shall be deemed sufficient for the purpose of meeting the requirements of this section.

(b) During the performance of this Contract, the Contractor shall include the provisions of subsection (1) of the section in every subcontract or purchase order of over $10,000.00, so that the provisions will be binding upon each subcontractor or vendor.

2.9 **Intellectual Property.** The Contractor represents and warrants that all goods and services that it will furnish under this Contract do not and will not infringe on any valid copyright, patent, service mark or trademark. The Contractor shall pay all royalties and license fees which may be due on the inclusion of any patented or copyrighted materials, methods or systems selected by the Contractor or used by the Contractor in the performance of its services. The Contractor shall defend, hold harmless and indemnify the City from all suits or claims for infringement of any patent rights or copyrights arising out of such selection.

2.10 **Personnel.** The Contractor shall not replace a person indicated in the Contractor's proposal as being assigned to perform services under this Contract for the City except in accordance with the provisions of this section. If the Contractor wishes to replace such a person, the Contractor shall provide the contract administrator of the City with a résumé of any proposed substitute, the opportunity to interview the proposed substitute and an explanation of the reason the substitution is necessary. The contract administrator of the City will only approve such a substitution when, in their opinion, the proposed substitute has equal or greater qualifications and experience than the person replaced.

2.11 **Property of Work.**

2.11.1 **Work Product.** Any material, report or product, whether in electronic or paper form, that results from the execution of this Contract shall be the sole property of the City. The Contractor shall not copyright any material or reports. Upon request, the Contractor shall turn over all work papers and related documents to the City.

2.11.2 **City Property.** Any data or material with which the City furnishes the Contractor shall remain the property of the City. When it no longer needs such data or material for its performance of this Contract, the Contractor shall return such data or material to the City or destroy such data or material using a method approved by the City.

3.0 **Payment.**

3.1 **Basis.** The City shall pay the Contractor for all goods delivered and services performed under this Contract in accordance with the pricing provisions set forth in the Contract Documents.

3.2 **Schedule.** The Contractor shall invoice the City on a schedule in accordance with the Contract Documents.

3.3 **Terms.** The City shall pay the Contractor as follows: Net 45 days.

3.4 **Subject-to-Appropriations.** All payments and other performance by the City under this Contract are subject to annual appropriations by the City Council; consequently, this Contract shall bind the City only to the extent that the City Council appropriates sufficient funds for the City to perform its obligations hereunder.

3.5 **When City Obligated to Pay.** The City shall not be obligated to purchase or pay for any goods or services covered by this Contract unless and until they are ordered and either delivered or performed, as the case may be.

3.6 **Offset Clause.** Pursuant to the Richmond City Charter, the City may withhold the payment of any claim or demand by any person, firm or corporation against the City until any delinquent indebtedness or other liability due the City from such person, firm or corporation shall first have been settled and adjusted.

3.7 **Taxes.** All prices shall be submitted exclusive of direct Federal, State and Local Taxes. The City shall not be liable for the payment of any taxes levied by any local, state, or federal governmental entity against the Contractor, and the Contractor shall pay all such taxes; furthermore, should the City nevertheless pay any such taxes, the Contractor shall reimburse the City therefor.

3.8 **Invoices.** The Contractor shall submit invoices that include a unique invoice number, the applicable City purchase order number, and the Contractor's federal Taxpayer Identification Number. All invoices submitted by the Contractor must set forth each item billed in sufficient detail to enable the City to ensure that the item was ordered and corresponds with the contract price for such item. If the Contractor does not include all of the required information on the invoice, the City may reject and return the invoice unpaid. The Contractor shall submit the original invoice to the City's Department of Finance at either:

accountspayable@richmondgov.com

or

City of Richmond
Accounts Payable
900 East Broad Street
Richmond, VA 23219.

The City prefers that the original invoice be sent to the above electronic mail address to facilitate timely payment. The Contractor shall submit a duplicate invoice to the attention of the "Requester" identified on the purchase order at the "Ship To" address identified on the purchase order.

3.9 **MBE/ESB Participation—Reporting Requirement.** In cases where the Contractor uses a minority subcontractor or vendor, it shall indicate the percentage of the invoiced

amount that such minority subcontractor or vendor performed on the MBE-3 form available on the City's website. The Contractor shall submit this form directly to the Office of Minority Business Development. The Contractor may contact the City's Office of Minority Business Development at (804) 646-3985 for questions or clarifications on the reporting policy. At the end of its performance of this Contract, the Contractor shall submit a summary in a format designated by the City of all payments made to minority subcontractors or contractors.

3.10 **Payment by ACH.** The Contractor agrees that the City may make all payments to the Contractor, at the option of the City, of any or all amounts due under this Contract through the Automated Clearing House network.

4.0 **Indemnification and Insurance.**

4.1 **Indemnification.** The Contractor shall indemnify, defend and hold harmless the City, its officers, agents and employees from and against any and all losses, liabilities, claims, damages and expenses (including court costs and reasonable attorneys' fees) arising from any material default or breach by the Contractor of its obligations specified in this Contract, as well as all claims arising from errors, omissions, negligent acts or intentional acts of the Contractor, its officers, agents and employees. Further, the Contractor shall assume the entire responsibility and liability for any and all damages to persons or property caused by or resulting from or arising out of any act or omission on the part of the Contractor, its subcontractors, its agents or its employees under or in connection with this Contract. The Contractor shall hold harmless and indemnify the City, and its agents, volunteers, servants, employees, and officers from and against any and all claims, losses or expenses, including but not limited to court costs and attorneys' fees, which any of them may suffer, pay or incur as the result of claims or suits due to, arising out of or in connection with any and all such damage, real or alleged. The Contractor shall, upon written demand by the City, assume and defend at the Contractor's sole expense any and all such claims or legal actions.

4.2 **Insurance.** The Contractor shall provide and maintain throughout the life of this Contract insurance in the kinds and amounts specified in this section with an insurer licensed to transact insurance business in the Commonwealth of Virginia. Each insurance policy, endorsement and certificate of insurance shall be signed by duly authorized representatives of such insurers and shall be countersigned by duly authorized local agents of such insurers.

4.2.1 **Costs and Premiums.** The Contractor shall pay all premiums and other costs of such insurance. The consideration paid or to be paid to the Contractor for the performance of the Contract includes the premiums and other costs of such insurance, and neither the City shall be responsible therefor.

4.2.2 **Policy Requirements.** All insurance contracts and policies shall provide, or be endorsed to provide, as follows:

(i) Subrogation against the City shall be waived.

(ii) The City, and its officers, employees, agents and volunteers shall be listed as an additional insured, except for Workers Compensation and Professional Liability.

(iii) Coverage will not be canceled, non-renewed or materially modified in a way adverse to the City without 30 days' written notice to the City.

(iv) The insolvency or bankruptcy of any of the insured shall not release the insurer from its obligation to satisfy claims otherwise within the coverage of such policies.

No insurance contract or policy shall be expanded to afford coverage which is greater than the maximum coverage approved for writing in the Commonwealth of Virginia.

4.2.3 **Evidence to Be Furnished.**

4.2.3.1 **Endorsements.** The Contractor shall furnish the City with a copy of the policy endorsement listing the City, and its officers, employees, agents and volunteers as an additional insured for each policy, other than Workers Compensation and Professional Liability, required under this section 4.2 ("Insurance"). The Contractor shall furnish the City with copies of such other endorsements as may be required under this Contract upon request by the City therefor.

4.2.3.2 **Certificates of Insurance.** The Contractor shall furnish the City with a certificate of insurance evidencing the above coverage, indicating that the City, and its officers, employees, agents and volunteers are listed as additional insured for each policy, other than Workers Compensation and Professional Liability, and that the coverage will not be canceled, non-renewed or materially modified in a way adverse to the City without 30 days' written notice to the City. All certificates of insurance shall show the Contract Number assigned to this Contract by the City.

4.2.3.3 **Contracts and Policies.** The Contractor is not required to furnish the City with copies of insurance contracts or policies required by this section 4.2 ("Insurance") unless requested at any time by the City's Director of Procurement Services.

4.2.4 **Schedule of Coverage.** The Contractor shall provide and maintain the following types of insurance in accordance with the requirements of this section 4.2 ("Insurance"):

(i) Commercial General Liability Insurance with a combined limit of not less than $1,000,000 per occurrence.

(ii) Automobile Liability Insurance with a combined limit of not less than $1,000,000 per occurrence.

(iii) Statutory Workers' Compensation and Employers' Liability Insurance with the Alternate Employer Endorsement WC 000301.

(iv) Either (a) for professional services, Professional Liability Insurance with limits of not less than $1,000,000 per claim, or (b) for non-professional services, Errors and Omissions Insurance with limits of not less than $1,000,000 per occurrence.

5.0 **Assignment, Delegation and Subcontracting.**

5.1 **By City.** The City may assign their rights or delegate their duties, in whole or in part, under this Contract by written notice delivered to the Contractor. Such transfer of rights or duties shall take effect upon the date specified in the notice or upon the assumption, if necessary, of the delegated duties by the assignee, whichever is later.

5.2 **By Contractor.** The Contractor shall not assign its rights or delegate its duties, or any part thereof, under this Contract without the prior written consent of the City. Further, the Contractor shall not assign, sublet or transfer its interest or any part thereof in this Contract by means or as part of any sale, merger, consolidation, assignment or any other event that would result in new or different ownership, control, operation or administration of the Contractor's business affairs without the prior written consent of the City.

5.3 **Subcontracting.** This Contract shall not be subcontracted without the prior written approval of the City's Director of Procurement Services.

6.0 **Remedies and Termination.**

6.1 **Default.** In case of default of the Contractor or if the Contractor fails to deliver the supplies or services ordered by the time specified, the City, after due notice in writing, may procure them from other sources and hold the Contractor responsible for any excess cost occasioned thereby. This remedy shall be in addition to any other remedies available to the City.

6.2 **Termination with Cause.**

6.2.1 **Notice.** The City may terminate this Contract with cause at any time for the Contractor's failure to perform its obligations under this Contract or to otherwise adhere to the terms and conditions of this Contract by delivery of written notice to the Contractor of the intent of the City to so terminate. Such notice shall be delivered at least seven calendar days prior to the date of termination and shall otherwise be given in accordance with the requirements of this Contract for the delivery of notices.

6.2.2 **Cure.** If the Contractor cures the failure to perform or otherwise adhere to the terms and conditions of this Contract to the satisfaction of the City, indicated in writing to the Contractor, during this seven calendar day period, then the notice of termination with cause shall be deemed null and void.

6.2.3 **Effect.** Upon such termination, the City shall be liable only to the extent of costs which may be reimbursable under this Contract that have been submitted by the Contractor and approved by the City up to the time of termination and only upon delivery to the City of all completed or partially completed work performed by the Contractor. The City shall have full right to use such work in any manner when and where it may designate without claim on the part of the Contractor for additional compensation.

6.3 **Termination without Cause.**

6.3.1 **Notice.** The City may terminate this Contract without cause by delivery of written notice to the Contractor of the City's intent to so terminate. Such notice must be delivered at least 90 calendar days prior to the date of termination and must otherwise be given in accordance with the requirements of this Contract for the delivery of notices.

6.3.2 **Effect.** Upon such termination, the City shall be liable only to the extent of any (i) costs which may be reimbursable under this Contract that have been submitted by the Contractor and approved by the City up to the time of termination and (ii) fees to which the Contractor may be entitled under this Contract as a result and only upon delivery to the City of completed or partially completed work. The City shall have full right to use such work in any manner when and where it may designate without claim on the part of the Contractor for additional compensation. No termination notice will relieve the Contractor of the obligation to deliver or perform on all outstanding orders issued prior to the effective date of termination.

6.4 **Termination by Contractor.**

6.4.1 **Notice.** The Contractor may terminate this Contract if the City Council does not appropriate sufficient funds for the City to perform its obligations under this Contract by delivery of written notice to the City of the Contractor's intent to so terminate. Such notice shall be delivered at least 45 calendar days prior to the date of termination and shall otherwise be given in accordance with the requirements of this Contract for the delivery of notices.

6.4.2 **Cure.** If the City cures the non-appropriation of funds by appropriating sufficient funds during this 45 calendar day period, then the Contractor's notice of termination shall be deemed null and void.

6.4.3 **Effect.** Upon such termination, the Contractor shall have no further obligations under this Contract.

6.5 **Waiver.** The waiver by any party of any term or condition of this Contract shall not be deemed to constitute either a continuing waiver thereof or a waiver of any further or additional right that such party may hold under this Contract.

7.0 **Dispute Resolution.**

7.1 **Governing Law.** All issues and questions concerning the construction, enforcement, interpretation and validity of this Contract, or the rights and obligations of the City and the Contractor in connection with this Contract, shall be governed by, and construed and interpreted in accordance with, the laws of the Commonwealth of Virginia, without giving effect to any choice of law or conflict of laws rules or provisions, whether of the Commonwealth of Virginia or any other jurisdiction, that would cause the application of the laws of any jurisdiction other than those of the Commonwealth of Virginia.

7.2 **Construction and Interpretation.** Each of the parties has had the opportunity to have its legal counsel review this Contract on its behalf. If an ambiguity or question of intent arises with respect to any provision of this Contract, this Contract will be construed as if drafted jointly by the parties. Neither the form of this Contract, nor any language herein, shall be construed or interpreted in favor of or against any party hereto as the sole drafter thereof.

7.3 **Contractual Claims.**

7.3.1 **Notice and Submission.** The Contractor shall give written notice of its intention to file a contractual claim at the time of the occurrence or the beginning of the work upon which the claim is based. In addition to such notice of its intention to file a claim, the Contractor shall submit all contractual claims, whether for money or other relief, in writing to the City's Director of Procurement Services no later than 60 calendar days after final payment. (*See* City Code § 21-167(a); *see also* Va. Code § 2.2-4363(A).)

7.3.2 **Required Contents of Claim Submission.** The Contractor's claim submission shall (i) set forth the primary, secondary and indirect claim issues in a clear, concise manner, (ii) identify the specific contract provisions, schedule impact and cost consequences related to each claim issue, and (iii) include all factual data supporting the claim as well as all supporting cost and delay data. The City's Director of Procurement Services, in the Director's sole discretion, may return claim submissions lacking any of the elements enumerated in the preceding sentence for resubmission or review the claim as though the missing elements are not factually present to support the claim. Such return of a claim submission shall not toll the 60-day period within which the Contractor must submit a claim.

7.3.3 **Procedures and Time Limit.** The procedures set forth in this section 7.3 ("Contractual Claims") and in City Code § 21-167 shall govern the consideration of contractual claims. The City's Director of Procurement Services shall issue a written decision on a claim no later than 90 calendar days after receipt of such claim in writing from the Contractor. (*See* City Code § 21-167(b); *see also* Va. Code § 2.2-4363(B).)

7.3.4 **No Action before Decision.** The Contractor may not invoke administrative procedures as provided in City Code § 21-168 or institute legal action as provided in City Code § 21-169 prior to receipt of the decision on the claim, unless the City's Director of

Procurement Services fails to render such decision within the 90-day time limit. A failure of the City's Director of Procurement Services to render a final decision within the 90-day time limit shall be deemed a final decision by the City denying the claim. (*See* City Code § 21-167(c); *see also* Va. Code § 2.2-4363(D).)

7.3.5 **Finality of Decision.** The decision of the City's Director of Procurement Services shall be final and conclusive unless the Contractor appeals within 30 calendar days of the date of the final decision on the claim by the Director either as provided in City Code § 21-168 for administrative appeals or, in the alternative, by instituting legal action as provided in City Code § 21-167. (*See* City Code § 21-167(d); *see also* Va. Code § 2.2-4363(E).)

7.3.6 **No Cessation of Performance.** Nothing in this section 7.3 ("Contractual Claims") shall be construed to authorize or permit the Contractor, while pursuing, by any available procedure, an appeal of a contractual claim or dispute, to cease performance of the Contract while such claim or dispute is pending. (*See* City Code § 21-167(e).)

7.4 **Alternative Dispute Resolution.** The City's Director of Procurement Services, with the concurrence of the City Attorney, may agree in writing on behalf of the City to submit particular disputes arising from this Contract to arbitration and to utilize mediation and other alternative dispute resolution procedures; however, any such procedures entered into by the City shall be nonbinding. (*See* City Code § 21-170; *see also* Va. Code § 2.2-4366.)

7.5 **Forum and Venue Choice.** Any and all disputes, claims and causes of action arising out of or in connection with this Contract, or any performances made hereunder, shall be brought, and any judicial proceeding shall take place, only in a federal or state court located in the city of Richmond, Virginia. The Contractor accepts the personal jurisdiction of any court in which an action is brought pursuant to this article for purposes of that action and waives all jurisdiction- and venue-related defenses to the maintenance of such action.

8.0 **Miscellaneous Provisions.**

8.1 **Audit.** The City reserves the right to audit all aspects of this Contract, including but not necessarily limited to (i) the Contractor's financial capability and accounting system, (ii) the basis for progress payments, (iii) the Contractor's compliance with applicable laws and (iv) appropriate vendor records. The City further reserves the right to review, on demand and without notice, all files of the Contractor or any subcontractor or vendor employed by the Contractor to provide services or commodities under this Contract where payments by the City are based on records of time, salaries, materials or actual expenses. The Contractor shall maintain all records subject to audit under this provision locally or in a manner deliverable at the Contractor's expense to a location in the metropolitan Richmond area.

8.2 **Captions.** This Contract includes the captions, headings and titles appearing herein for convenience only, and such captions, headings and titles shall not affect the construal, interpretation or meaning of this Contract.

8.3 **Force Majeure.** If any party is unable to perform its obligations under this Contract due to acts of God or circumstances beyond its reasonable control, such obligations shall be suspended as long as those circumstances persist, provided that the delaying party promptly notifies the other party of the delay and the causes. Except where the delay is caused by an act or omission of the delaying party, any costs arising from such delay shall be borne by the party incurring the delay.

8.4 **Merger / Entire Agreement.** This Contract, including the exhibits incorporated herein, constitutes both a complete and exclusive statement and the final written expression of all the terms of this Contract and of the entire understanding between the City and the Contractor regarding those terms. No prior written agreements or contemporaneous or prior oral agreements between the City and the Contractor regarding this Contract's subject matter shall be of any effect.

8.5 **Modification.** This Contract shall not be amended, modified, supplemented, or otherwise changed except in the form of a City Contract Modification signed by the authorized representatives of the City and the Contractor in accordance with the City's Purchasing Policies and Procedures.

8.6 **No Third-Party Beneficiaries.** Notwithstanding any other provision of this Contract, the City and the Contractor hereby agree that: (i) no individual or entity shall be considered, deemed or otherwise recognized to be a third-party beneficiary of this Contract; (ii) the provisions of this Contract are not intended to be for the benefit of any individual or entity other than the City or the Contractor; (iii) no individual or entity shall obtain any right to make any claim against the City or the Contractor under the provisions of this Contract; and (iv) no provision of this Contract shall be construed or interpreted to confer third-party beneficiary status on any individual or entity. For purposes of this section, the phrase "individual or entity" means any individual or entity, including, but not limited to, individuals, contractors, subcontractors, vendors, sub-vendors, assignees, licensors and sub-licensors, regardless of whether such individual or entity is named in this Contract.

8.7 **Notices.**

8.7.1 **In General.** Any written notice by any party to the Contract shall be sufficiently given by any one or combination of the following, whichever shall first occur: (i) delivered by hand to the last known business address of the person to whom the notice is due, (ii) delivered by hand to the person's authorized agent, representative or officer wherever they may be found or (iii) enclosed in a postage prepaid envelope addressed to such last known business address and delivered to a United States Postal Service official or mailbox. Notice is effective upon such delivery.

8.7.2 **Address.** All notices to the City shall clearly indicate the Contract Number assigned to this Contract by the City and shall be directed to:

Director of Procurement Services
Department of Procurement Services
City of Richmond
900 East Broad Street, Room 1104
Richmond, Virginia 23219

All notices to the Contractor shall be directed to the contact person stated at the address given in the Contractor's proposal.

END OF GENERAL TERMS AND CONDITIONS

PART IV
SPECIAL PROVISIONS

1.0 A redacted copy of the proposal should be submitted electronically. The City prefers this copy be via USB; however, a CD will be accepted. If the Offeror's proposal contains proprietary or confidential information, or trade secrets, the Offeror must submit one (1) additional redacted electronic copy.

2.0 COOPERATIVE PROCUREMENT

A. Pursuant to City Code § 21-40 / Va. Code § 2.2-4304, this procurement is being conducted on behalf of other public bodies as well as the City. Other public bodies must make their own legal determinations as to whether use of this Contract is consistent with their laws, regulations and other policies.

B. Unless the Contractor took exception to the requirements of this section at the time the Contractor submitted its response to the solicitation resulting in this Contract, the Contractor shall allow public bodies, as defined by the Virginia Public Procurement Act, within the United States of America to make purchases under this Contract at the prices set forth herein and in accordance with the terms, conditions and specifications of this Contract. Exception to this requirement by a respondent to the solicitation shall not affect any evaluation by the City of that respondent's response to the solicitation.

C. The Contractor shall deal directly with any public body that elects to use this Contract. Solely for purposes of the relationship between the Contractor and such other public body that makes purchases under this Contract, such other public body shall have the rights and obligations ascribed to the City by this Contract.

D. The City, its officers and its employees shall not be responsible for the placement of orders, invoicing, payments, contractual disputes or any other transactions between the Contractor and any other public body. In no event shall the City, its officers or its employees be responsible for any costs, damages or injuries resulting to any party from the use of the resulting contract by another public body. Should another public body make purchases under the resulting contract and breach or default in its obligations to the Contractor, the City shall have no liability for such breach or default by the other public body.

E. The City assumes no responsibility for any notification of the availability of this Contract for use by other public bodies. However, the Contractor may conduct such notification after award of this Contract.

F. The Contractor shall furnish the City with semiannual reports identifying all other public bodies which used this Contract within the six months preceding the report,

the quantities purchased from the Contractor by each, and the dollar amounts paid to the Contractor by each.

3.0 **PRICE ESCALATION/DE-ESCALATION**

Price adjustments may be permitted for changes not to exceed 2% in the following index/indices Consumer Price Index –Urban Consumers; Wage Earners and Clerical Workers (CPI-W) 1982-84=100 (Unadjusted)-CWUR0000S0. No price increases will be authorized for 365 calendar days after the effective date of the contract. Price escalation may be permitted only at the end of this period and each 365 days thereafter and only where verified to the satisfaction of the purchasing office. However, "across the board" price decreases are subject to implementation at any time and shall be immediately conveyed to the City.

Contractor shall give not less than 30 days advance notice of any price increase to the purchasing office. Any approved price changes will be effective only at the beginning of the calendar month following the end of the full 30 day notification period. The contractor shall document the amount and proposed effective date of any general change in the price of materials. Documentation shall be supplied with the contractor's request for increase which will: (1) verify that the requested price increase is general in scope and not applicable just to the City; and (2) verify the amount or percentage of increase which is being passed on to the contractor by the contractor's suppliers.

The Department of Procurement Services will notify the using agencies and contractor in writing of the effective date of any increase which it approves. However, the contractor shall fill all purchase orders received prior to the effective date of the price adjustment at the old contract prices. The contractor is further advised that decreases which affect the cost of materials are required to be communicated immediately to the Department of Procurement Services.

END OF SPECIAL PROVISIONS

Dominion Elevator Inspection Services

Response to City of Richmond

RFP No. T190020293

Elevator Inspection Services for the City of Richmond

TRANSMITTAL LETTER

May 24, 2019

Dear Ms. Lewis-Wilson and Members of the Selection Committee,

Attached is our proposal for RFP #T190020293 - Elevator Inspection Services for City of Richmond.

During the past 28 years, Dominion Elevator Inspections Services has provided inspection services throughout Virginia, Maryland, Pennsylvania and the Washington DC metropolitan area. We have developed long term relationships with customers and consistently grown our business based on our ability to deliver thorough inspections in an efficient and effective manner.

For the past 15 years, we have provided elevator inspection services to the City of Richmond. To maintain this relationship, we have highlighted in this proposal our approach to continue our quality service at a competitive price.

We look forward to providing the City of Richmond with continued elevator safety excellence.

Required Information:

Firm Name:	Dominion Elevator Inspection Services
Firm Address:	6767 Forest Hill Avenue Suite 216 Richmond, VA 23225
Contact Name:	Sean Darby
Telephone Number:	(410)-917-7233
Fax Number:	(410)-661-0623
Email:	sean@dominioninspections.com

Thank you for your time and consideration,

Sincerely,

Sean Darby

Sean Darby

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SIGNATURE SHEET

This signature sheet must be included as part of the offeror's proposal, or the City will not consider the proposal. The offeror's signature below certifies that this proposal as submitted complies with, and the offeror agrees to be legally bound by, all terms and conditions set forth in Request for Proposals No. T190020293 for Elevator Inspection Services. The undersigned hereby represents and warrants that the undersigned is duly authorized to sign and submit this proposal on behalf of the offeror.

Complete Legal Name of Offeror Firm:	Dominion Elevator Inspection Services
"Order from" Address:	6767 Forest Hill Avenue Suite 216 Richmond, VA 23225
"Remit to" Address:	6767 Forest Hill Avenue Suite 216 Richmond, VA 23225
Federal EIN / SSN:	[redacted]
Authorized Signature:	Sean Darby
Printed Name of Signatory:	Sean P. Darby
Telephone Number with Area Code:	(410) 917-7233
Fax Number with Area Code:	(410) 661-0753
E-mail Address:	sean@dominioninspections.com
Date:	May 24, 2019

ADDENDA ACKNOWLEDGEMENT

We acknowledge the receipt of the following addenda:

1. Addendum 1: Bid Tab Worksheet (dated May 8, 2019)
2. Addendum 2: Changes to Statement of Needs (dated May 13, 2019)
3. Addendum 3: Revised Form (dated May 22, 2019)
4. Addendum 4: Answers to Questions submitted (May 23, 2019)

Authorized Signature:	Sean Darby
Printed Name of Signatory:	Sean P. Darby
Telephone Number with Area Code:	(410) 917-7233
Fax Number with Area Code:	(410) 661-0753
E-mail Address:	sean@dominioninspections.com
Date:	May 24, 2019

STATE CORPORATION COMMISSION FORM

Complete Legal Name of Bidder Firm:

ATAB, LLC dba Dominion Elevator Inspection Services

Virginia State Corporation Commission registration information. The bidder:

X is a corporation or other business entity with the following State Corporation Commission identification number: [redacted]

-OR-

☐ is not a corporation, limited liability company, limited partnership, registered limited liability partnership, or business trust

-OR-

☐ is an out-of-state business entity that does not regularly and continuously maintain as part of its ordinary and customary business any employees, agents, offices, facilities, or inventories in Virginia (not counting any employees or agents in Virginia who merely solicit orders that require acceptance outside Virginia before they become contracts, and not counting any incidental presence of the bidder in Virginia that is needed in order to assemble, maintain, and repair goods in accordance with the contracts by which such goods were sold and shipped into Virginia from bidder's out-of-state location)

-OR-

☐ is an out-of-state business entity that is including with this bid an opinion of legal counsel which accurately and completely discloses the undersigned bidder's current contacts with Virginia and describes why those contacts do not constitute the transaction of business in Virginia within the meaning of section 13.1-757 or other similar provisions in Titles 13.1 or 50 of the Code of Virginia

-OR-

☐ has not completed any of the foregoing options but currently has pending before the State Corporation Commission an application for authority to transact business in the Commonwealth of Virginia and wishes to be considered for a waiver to allow the bidder to submit the State Corporation Commission identification number after the due date for bids. The bidder shall promptly provide any information the City requires to enable the City to properly evaluate the bidder's request for such a waiver. The City reserves the right to determine in its sole discretion whether to allow such a waiver.

OFFICE OF MINORITY BUSINESS DEVELOPMENT FORMS

We are not a qualified Minority Business Enterprise (MBE) or Emerging Small Business (ESB). Therefore, we are not including the following Minority Business development forms:

1. MBE / ESB Participation Form (MBE-2)
2. Monthly Compliance Report (MBE-3)

Authorized Signature:	Sean Darby
Printed Name of Signatory:	Sean P. Darby
Telephone Number with Area Code:	(410) 917-7233
Fax Number with Area Code:	(410) 661-0753
E-mail Address:	sean@dominioninspections.com
Date:	May 24, 2019

STATEMENT OF SCOPE

At the highest level, the primary goal of the City of Richmond is to ensure safe, reliable and code-compliant vertical transportation for the general public. While this objective is common for all jurisdictions, each jurisdiction has some nuanced needs related to its elevator inspections and plan reviews. As the incumbent provider of elevator inspection services for the City of Richmond, we have a very clear understanding of the contract requirements and the City's specific needs.

The City of Richmond is seeking a qualified vendor to provide a comprehensive inspection program for all of the City's vertical transportation units, totaling approximately 1,500 elevators, escalators and other units.

A comprehensive inspection program includes the following components:

1. Inspect existing elevator equipment in compliance with ASME A17.2.
   For existing units, there are two periodic inspections each year (every six months):
   a. One is a periodic inspection without a related test, and
   b. The other is a periodic inspection with either an annual periodic test (Category 1 test) or a 5-year periodic test (Category 5 test).

2. Perform final inspections of new or altered elevator equipment.

3. Prepare notices of violation.

4. Establish and maintain a Quality Control program, including a verification of a minimum of 10% of all inspections by type.

5. Perform plan reviews, reviewing construction documents for proposed installation of new or altered equipment.

6. Provide timely response and investigation of elevator accidents, complaints and facility emergencies.

7. Provide transportation and necessary equipment (except the City-issued electronic devices) to perform the services required.

8. Assist the City of Richmond with information for court cases for matters including violations, defaults and civil suits, including serving as expert witness for the City.

9. Schedule all reviews, inspections and tests in a timely, efficient and effective manner, ensuring productive use of time for all parties involved (building representatives, elevator maintenance companies, City employees and inspectors).

10. Understand the Vertical Lift Lock Out / Out of Service requirements, and implement lockouts / shutdowns as needed.

11. Provide detailed invoicing of work performed every two weeks.

12. Meet all City reporting and data requirements through detailed monthly reporting of plan reviews and inspections.

13. Utilize City-provided electronic devices in performing all activities above.

14. Re-inspect / re-review all work rejected by the City.

We will perform all of the contract-related work with our well-trained, professional team of inspectors and support staff.

We are excited at the prospect of continuing our partnership with the City of Richmond and providing the most effective elevator inspection program in the industry.

EXECUTIVE SUMMARY

Dominion Elevator Inspection Services (Dominion) has been in business since 1991 and has been performing elevator inspections for the City of Richmond for the past 15 years.

This proposal highlights what we believe are six core strengths of our company that are directly related to the City of Richmond RFP:

1. Our knowledge of the City of Richmond's elevator inspection needs
2. Our local Richmond team
3. Our corporate strength, depth, experience and history
4. Our commitment to quality inspections
5. Our focus on superior customer service
6. Our use of technology

Our knowledge of the City of Richmond's elevator inspection needs

As the incumbent provider for the City of Richmond elevator inspections for the last 15 years, we have extensive knowledge of the City's -

- buildings and elevators,
- building owners and property managers,
- elevators maintenance companies and their personnel,
- internal staff connected to the City's inspection program.

Because of this knowledge, we are uniquely positioned to not only hit the ground running but continue to deliver at the same high level (or higher as needed) that we have been delivering. Our familiarity with the items listed above and the challenges and nuanced needs of the City put us in an excellent position to tackle these challenges and meet or exceed these needs.

Our local Richmond team

Our local Richmond team provides us with another tremendous advantage as a bidder for this contract. Led by Marcus Albin, this team is a group of individuals that has not only called Richmond home for a very long time and has the local market knowledge referenced above, they are experienced, skilled and passionate about their work.

The three inspectors, Marcus, Marion (Buddy) Childress and Richard Holloway, each have over 25 years of elevator maintenance and inspection experience in Richmond. Our Richmond Office Manager, Brittany Pryor, has been providing strong support for Dominion and the City of Richmond for three years, and she has been a valuable asset for both parties.

Our corporate strength, depth, experience and history

Dominion and its sister company, Allsafe Elevator Inspections, have been in business for 28 years and 9 years, respectively. They merged three years ago, and their combined revenues now exceed $6 million. The individual companies and the combined entity each have strong balance sheets and strong operating performance.

Dominion has 17 inspectors, and Allsafe has 8 inspectors. All of these professionals are QEI certified with an average industry tenure in excess of 25 years. If needed, the Richmond office of Dominion can draw on these resources.

We have a diverse customer base - ranging from large jurisdictions, government facilities, colleges and universities, and large commercial portfolios to small office buildings, schools and churches. This diversity is consistent with the needs of the City of Richmond.

Our status as the largest elevator inspection company in the Mid-Atlantic region is well-deserved, and we are well-positioned to continue to support the City of Richmond contract.

Our commitment to quality inspections

Our highly experienced and competent inspectors perform thorough inspections, which include a standard list of items in five areas:

1. Elevator machine room
2. Elevator hoistway
3. Elevator pit
4. Elevator car
5. Lobbies of the elevators

In addition to performing a complete inspection, we are committed to establishing an effective quality control program which will further ensure the safety of Richmond's vertical transportation equipment.

Our focus on superior customer service

Dominion is committed to meeting and exceeding customer needs and expectations.

Our local Richmond team understands the importance of strong relationships, organized schedules and effective communications. Marcus Albin leads the effort on this front; he possesses the rare combination of excellent technical skills and a strong customer focus.

Marcus's enthusiasm and passion for doing things the right way is contagious and impacts everyone around him, including the building owners, property managers and the elevator maintenance companies.

Our use of technology

We understand the importance of technology in running an efficient organization. Some examples of our commitment include the following:

- Implemented a cloud-based CRM system across part of our business, leveraging the use of tablets and increasing the efficiency of inspector assignments and the 'paper flow' related to inspections. We are in the process of extending this platform across our entire business.
- Worked closely with City of Richmond personnel in the development and initial roll-out of EnerGov.
- Customized our cloud-based accounting system to meet the needs of the elevator inspection industry, providing greater clarity and transparency related to our financial performance.
- Implemented a cloud-based service to process our payables, reducing costs and increasing efficiency.

We appreciate and support the City of Richmond's drive to fully implement EnerGov and achieve the productivity gains available through new technologies.

Conclusion

In summary, we are excited about the prospect of continuing our relationship with the City of Richmond and providing the best elevator inspection program possible.

KEY PERSONNEL

Dominion Elevator has been performing elevator inspections for the City of Richmond over the past 15 years. Our experienced team in Richmond is a major strength of our company and provides us the ability to meet all the requirements referenced in this solicitation.

The Richmond team is led by Marcus Albin. Marcus is directly responsible for the day-to-day operation of the Richmond office, including the City of Richmond contract. He has lived in the Richmond area for over 50 years and has been performing inspections in the City of Richmond for over 19 years. He has 34 years of experience in the elevator industry and has been a QEI inspector since 2000. He is also certified as a QEI Inspector Supervisor.

It would be hard to find anyone who knows more about elevators in the City of Richmond than Marcus. He has performed all inspection tasks listed in the RFP – plan reviews, final inspections, periodic inspections, periodic tests, lock outs and accident investigations for many years.

The relationships Marcus has developed with building owners and managers, building inspectors, electrical inspectors and the City of Richmond team plays a key role in the success of an effective elevator inspection program. Marcus is easy to work with and dedicated to providing the City of Richmond with a quality elevator inspection program.

The two other full-time inspectors on the Richmond team are Marion (Buddy) Childress and Richard Holloway. These two individuals were both elevator mechanics based in the Richmond area prior to becoming inspectors. They have been inspectors in Richmond for several years and are also familiar with the buildings and processes. Inspectors with local experience and local knowledge are an advantage for Dominion.

Our office manager is Brittany Pryor. Brittany has managed the Richmond office for three years and works closely with the City of Richmond team. Brittany is responsible for the administrative functions of the Richmond office.

Over the past two years, in an effort to partner with the City of Richmond, Brittany has worked very closely with the City of Richmond team. Some of these efforts include:

1. Updating the diary list of dates for elevator inspections.
2. Researching required inspections.
3. Answering citizen inquiries.
4. Issuing elevator certificates.
5. Collecting new contacts and building information (building owner name, phone number, and email address).
6. Sending out invoices ($570,650) for the City.
7. Following up on the collection on outstanding balances.

8. Working with City officials to update the City's elevator program SOPs.
9. Helping with the re-configuration of the elevator program within EnerGov.

Our goal has always been to partner with the City of Richmond in making the elevator inspection program as effective and efficient as possible. We believe that our local Richmond team has very open lines of communication with the City of Richmond team, which facilitates the achievement of this goal.

Mike Clark is the President of Dominion and will support Marcus and his team in ensuring Dominion provides all the services required in the RFP. Mike has 38 years of experience in the elevator industry, working for Otis Elevator for 8 years (as a mechanic), for National Elevator Inspection Services (NEIS) for 14 years and for Dominion the last 16 years. Mike has worked closely with Marcus for the past 15 years on the City of Richmond contract. He has 29 years of direct experience in administering this type of jurisdictional program. He is currently working with the City of Alexandria on a similar contract. Note that he is a QEI Inspector Supervisor.

Mike will be responsible for implementing the Quality Control Program for the City of Richmond engagement. He will perform the quality control inspections along with Marcus Albin. Both of these individuals have extensive elevator maintenance and inspection experience, which make them well-suited for quality control.

Tracey Meyers is the Operations Manager for Dominion. She will be creating the invoices related to the work performed in the City of Richmond. Tracey has 22 years of experience in the elevator inspection industry. She acts as a back-up for Brittany for any administrative requirements related to this contract.

Sean Darby is the CEO of Allsafe Dominion LLC, the parent company of Dominion Elevator Inspection Services (Dominion). He has 29 years of experience in the elevator industry, working for Otis Elevator for 20 years (in sales and service) and in the inspection industry for 9 years. Sean has been part of the project team for the City of Richmond contract for the past three years.

Carter Buxbaum is the CFO of Allsafe Dominion. He is responsible for the Finance and Accounting functions of the company. Carter is a resident of Richmond, where he has lived for over 20 years.

In addition to our Richmond team and Corporate support, Dominion has 14 inspectors in the greater DC Metro area. Our large inspector pool provides us with ample inspector capacity to handle the volume of work, including qualified back-ups, as needed.

Required information not included on the resumes:

Name	Sean Darby	Mike Clark	Marcus Albin
Title	CEO	President	Regional Manager
Office Location	Baltimore, MD	Alexandria, VA	Richmond, VA
City of Residence	Baltimore, MD	Alexandria, VA	Chesterfield, VA

Name	Buddy Childress	Richard Holloway	Brittany Pryor
Title	Inspector	Inspector	Office Manager
Office Location	Richmond, VA	Richmond, VA	Richmond, VA
City of Residence	Chesterfield, VA	Rockville, VA	Henrico, VA

Name	Tracey Meyers	Carter Buxbaum
Title	Operations Manager	CFO
Office Location	Wellsville, PA	Richmond, VA
City of Residence	Wellsville, PA	Richmond, VA

Attached are the resumes of the key personnel.

Sean P. Darby
CEO, Allsafe Dominion LLC

Education

University of Virginia, Darden School - MBA, 1990
Trinity College – BA Mathematics, 1983

Experience

Experienced elevator industry executive with over 29 years of experience

- 20 years at a major elevator manufacturer in sales and management
- 9 years in the inspection and consulting business

2016-Present **Allsafe Dominion Elevator Inspections** *Baltimore, MD*

CEO

- Provide strategic direction and operational and leadership for the two business units – Allsafe Elevator Inspections and Dominion Elevator Inspection Services.
- Lead the consulting practice, delivering elevator expertise to broad range of clients.
- Drove revenue growth from $4 million to $6 million over the last three years.

2011-2016 **Allsafe Elevator Inspections** *Baltimore, MD*

Principal / Founder

- Founded the company to attack a market need.
- Led inspections sales and provided consulting expertise.
- Drove year over year growth in excess of 15%.

1990-2010 **Otis Elevator Company, Baltimore, MD** *Baltimore, MD*

New Equipment Team Leader in Baltimore for over 14 years

- Responsible for sales growth and key person in making Otis the leader in new equipment in Baltimore area.
- Assisted in introduction of new products and systems to owners and architects.

Service Manager for Otis Elevator in Baltimore Office

- Provided operational control in elevator maintenance business servicing over 4,000 units (elevators, escalators and vertical lifts).
- Managed 3 supervisors and 25+ elevator mechanics.

Professional

Member, Community Associations Institute (CAI)
Former QEI Elevator Inspector

Michael W. Clark
President, Dominion Elevator Inspection Services

Education

B.S. Degree, Southern Illinois University
Completed National Elevator Industry Education Program
Completed National Association of Elevator Safety Authorities

Experience

2003-Present **Dominion Elevator Inspection Services, Inc. (DEIS)** *Washington, DC*
President

- Manage the inspections of approximately 12,000 elevators in VA, MD, PA and Washington DC.
- Hire and train new inspectors and clerical staff.
- Perform inspections - witness finals, full load, periodic and routine inspections
- Responsible for two large jurisdictions in Virginia, serving as principal contract manager for the City of Richmond (since 2004) and the City of Alexandria (since 2005).

1989-2003 **National Elevator Inspection Services, Inc. (NEIS)** *Washington, DC*
Assistant Vice President

- Served as principal contract manager for 8 years.
- Responsible for hiring and training new inspectors and clerical staff.
- Was first in the DC Metro area to initiate a comprehensive Quality Control program outlined by the building official for the City of Alexandria in 1997 and Fairfax County in 1999.

1981-1989 **Otis Elevator Company** *Washington, DC*
Elevator Mechanic

- Performed all phases of elevator construction, maintenance, modernization and repair.

Professional

National Association of Elevator Safety Authorities
Virginia Building and Code Officials Association
Building Officials and Code Administrators International, Inc.
Central Virginia Elevator Association

Certifications

ASME/ANSI QEI (National Certification) # 508
ASME/ANSI QEI Supervisor # S-33
Virginia Elevator Inspector General
National BOCA Certified
State of Pennsylvania Certification # 4004

Marcus Albin
Regional Manager

Education

A.A. Virginia Wesleyan College
Completed National Elevator Industry Education Program
Completed National Association of Elevator Safety Authorities

Experience

2004-Present **Dominion Elevator Inspection Services, Inc.** *Richmond, VA*

- Serve as Regional Manager responsible for scheduling and completion of all elevator testing for the City of Richmond.
- Supervise two QEI Inspectors and the Office Manager.
- Witnessed final inspections, periodic inspections, and all associated re-inspections.
- Assisted with preparing bi-monthly invoices and kept up with the QC program.

2000-2004 **National Elevator Inspection Services, Inc.** *Richmond, VA*

- Started as a Field Inspector witnessing annual tests.
- Promoted to Regional Manager and responsible for assisting the Chief Elevator Inspector with performing of inspections.

1985-2000 **Thyssen-Krupp Elevator Company** *Richmond, VA*

- Began as a Probation Helper installing elevators, then promoted to the Service Department, repairing and adjusting elevators.
- Worked in all phases of elevator construction, maintenance, modernization and repairs.

Professional Affiliations

National Association of Elevator Safety Authorities
Central Virginia Elevator Association
Virginia Building and Code Officials Association

Elevator Certifications

ASME/ANSI QEI Supervisor # S-237
Virginia Elevator Inspector General

Marion (Buddy) Childress
Elevator Inspector

Education

Thomas Dale High School, Chester VA
John Tyler Community College
Insulators Trade School
Elevator Trade School

Experience

2015-Present **Dominion Elevator Inspection Services** *Richmond, VA*
Elevator Inspector

1999-2015 **Otis Elevator Company** *Richmond, VA*
Elevator mechanic in maintenance and repair

1983-1999 **Dover Elevator** *Richmond, VA*
Elevator mechanic in construction, working on hydro and traction equipment

Professional Affiliations

Retired President of IUEC Local #51

Elevator Certifications

NEIEP Mechanic Certificate
Welding Certificate

Richard L. Holloway
Elevator Inspector

Education

National Elevator Industry Education Program, 1985
Richmond Technical Center, DC. Electronics, 1980
Patrick Henry High School, 1972

Experience

2016-Present — **Dominion Elevator Inspection Services (DEIS)** — *Richmond, VA*

Elevator Inspector

- Perform elevator inspections - witness finals, full load, periodic and routine inspections

2009-2016 — **Central Elevator Inspection Services** — *Richmond, VA*

Elevator inspector

- Perform elevator inspections - witness finals, full load, periodic and routine inspections

2001-2009 — **Otis Elevator Co.** — *Richmond, VA*

Elevator Mechanic

- Performed all phases of elevator construction, maintenance, modernization and repair.

1993-2001 — **Wingfield & Hundley Elevator Company** — *Richmond, VA*

Elevator Mechanic

- Maintained and serviced cable and hydraulic elevators
- Coordinate major repairs

Professional Affiliations

Elevator Inspector Certificate, March 2009
International Union of Elevator Constructors, Local 51
Union School Instructor for six years

Brittany Pryor
Office Manager, Richmond Office

Education University of Virginia - BA Drama, 2010

Experience

2016-Present **Dominion Elevator Inspection Services (DEIS)**
Office Manager *Richmond, VA*

- Performs complete billing function for the City of Richmond contract
- Works with City of Richmond and Tyler Technologies to develop EnerGov elevator inspection monitoring program
- Files inspection reports to update site information with EnerGov
- Issues elevator certificates.
- Collects new contacts and building information (building owner name, phone number, and email address).
- Sends out invoices for the City of Richmond.
- Follows up on the collection on outstanding balances.

2011-2016 **Fulton Bank** *Richmond, VA*
Operations Specialist

- Accepted and completed loan applications
- Provided responsive, quality customer service on a consistent basis
- Strictly followed requirements of audit and compliance

2008-2011 **Michaela's Quality Bake Shop** *Richmond, VA*
Shop Assistant

- Decorated and assisted in production of bakery orders
- Worked as a cashier in a fast-paced environment
- Worked as a delivery driver whenever needed

Tracey Meyers
Operations Manager, Dominion Elevator Inspection Services

Education

A.A. Degree, Catonsville Community College
66 Credits at UMBC toward B.S. Degree in Biological Sciences
Chartered Property Casualty Underwriters (CPCU) Courses 510, 520, 530 and 540.

Experience

2003-Present — **Dominion Elevator Inspection Services, Inc (DEIS)** *Wellsville, PA*
Operations Manager

- Manage all administrative and clerical operations.
- Lead daily operations for the Corporate office in PA.
- Responsible for daily operations for the regional office in Alexandria and Richmond.

1997-2003 — **National Elevator Inspection Services, Inc (NEIS)** *Washington, DC*
Office Manager

- Managed inspection scheduling for various jurisdictions, including Fairfax County and City of Alexandria.
- Coordinated scheduling of testing with service companies and our inspectors.

1993-1997 — **Steve's Foods, Inc** *Cockeysville, MD*
Manager

- Established day-to-day operations for start-up company distributing frozen foods.
- Responsible for accounts payable and accounts receivable, maintaining inventory, advertising, customer service and hiring, training and dispatching sales professionals.

1987-1993 — **United States Fidelity and Guarantee Company** *Baltimore, MD*
Actuarial Assistant

- Responsible for analyzing data and compiling information for the Actuary.

Interests

Accumulated over 1,200 Certified Volunteer Services Hours with organizations such as Pets on Wheels and Damiens Gift Foundation.

Carter E. Buxbaum
CFO, Allsafe Dominion LLC

Education	University of Virginia, Darden School - MBA, 1990 University of Virginia, McIntire School – BS Commerce, 1983
Experience	Experienced financial executive with extensive strategic and financial planning experience across multiple industries
2016-Present	**Allsafe Dominion Elevator Inspections** *Richmond, VA* CFO • Provide leadership and direction on wide range of strategic and general business issues. • Drive Finance and Accounting functions.
2008-2015	**Xenith Bank** *Richmond, VA* Senior Vice President – Strategy & Planning • Drove the strategic planning, financial planning, asset-liability management (ALM), wholesale funding and deposit pricing functions of a $1 billion Virginia-based commercial bank.
2006-2007	**Circuit City Stores, Inc.** *Richmond, VA* Vice President, Finance / Corporate Planning • Led the Corporate Planning group for $13 billion consumer electronics retailer.
2001-2006	**Capital One Financial Corporation** *Richmond, VA* Director of Finance
1999-2001	**First USA Bank (currently JP Morgan Chase)** *Wilmington, DE* First VP / VP – Credit Card Partnership Strategy
1994-1998	**Signet Bank (currently Wells Fargo)** *Richmond, VA* SVP / VP / AVP – Finance / Business Analyst
1990-1994	**AMVEST Corporation (currently Consol Energy)** *Charlottesville, VA* Vice President, Finance
1983-1988	**Arthur Andersen & Co.** *Washington, DC* Vice President, Finance / Corporate Planning

OFFEROR HISTORY

Dominion was incorporated in 1991 in the State of Maryland to provide specialized elevator inspection services. Dominion has grown significantly over the years and is now a leading elevator inspection company in the Washington DC metropolitan area, as well as in Maryland, Virginia and Pennsylvania. Our client list includes Fortune 500 companies, federal and local government entities, universities and hospitals, and major property management portfolios. Dominion inspects over 12,000 units annually.

In 2016, Dominion was converted to a limited liability company (LLC) in the state of Maryland and merged with Allsafe Elevator Inspections (Allsafe), based in Baltimore, MD. Allsafe is the leading elevator inspection company in the Baltimore metropolitan area, inspecting over 6,500 units annually. The two companies (Dominion and Allsafe) operate together under the corporate entity of Allsafe Dominion LLC to provide the most comprehensive elevator inspection coverage in the Mid-Atlantic region.

Dominion and Allsafe share resources to provide the highest quality elevator inspection services for our customers. Together we have access to 25 full-time inspectors and 12 administrative support personnel. We have offices in Richmond, Alexandria, Baltimore and Wellsville, PA. We inspect over 18,500 units is the Mid-Atlantic area with annual revenues in excess of $6 million.

We perform a comprehensive set of elevator inspection services, including -

- Safety inspections on elevators, escalators, dumbwaiters, man-lifts and moving walks
- Acceptance inspections
- Witnessing of no-load and full-load tests
- Plan reviews
- Accident and incident investigations
- Expert witness testimony and technical consulting services

We perform services similar to those requested in the RFP across a range of customers, including several major accounts:

- City of Richmond (incumbent)
- City of Alexandria
- Pentagon
- Universities (Howard, Catholic)
- Hospitals (Mercy Medical, St. Agnes, Pinnacle Health Services)
- Numerous GSA Facilities
- National Aquarium
- MGM National Harbor Casino
- Federal Courthouses in Baltimore (Garmatz & Fallon)

As listed above, Dominion is the current provider of elevator inspection services for the City of Richmond and the City of Alexandria. We have been the City of Richmond provider for 15 years and the City of Alexandria provider for 16 years.

We have demonstrated that we can meet the demands of a large jurisdiction, including the following:

- Scheduling the periodic inspections
- Performing the inspections
- Processing the inspection reports
- Performing plan reviews (and other non-inspection work), as needed
- Invoicing for the work performed

Our broad scope of services, QEI inspector capacity and strong administrative support provides us with a competitive advantage wherever we inspect. Our talented and highly trained team provides the excellent service and quality our clients have come to expect. Our ability to meet various scheduling requirements gives us the status as the 'go to' inspection company in the region.

Required information

State in which LLC is organized	Maryland
Date LLC organized	2016

Managers of LLC

• Sean Darby	CEO	(410) 917-7233	3 years
• Mike Clark	President	(571) 259-3107	3 years
• Marcus Albin	Regional Manager	(804) 400-8464	3 years

Note that the experience listed above only reflects the years of service as manager of Dominion since the conversion to an LLC in 2016.

- Sean Darby has 20 years of experience at Otis Elevator (sales and service) and 9 years of experience at Allsafe Elevator Inspections.
- Mike Clark and Marcus Albin have both worked at the LLC predecessor for at least 15 years.

Members of the LLC

• Allsafe Dominion, LLC	(410) 661-0623	3 years	99% ownership
• ATAB, LLC	(717) 432-0590	3 years	1% ownership

By submitting its proposal ATAB, LLC dba Dominion Elevator Inspection Services (the Offeror) certifies and represents that the information that the Offeror provides in response to this Request for Proposals is accurate and complete as of the date of such submission.

If the Offeror provides no information in response to any of the requirements of the Request for Proposals, then the Offeror, by submitting its proposal certifies and represents that such requirements do not apply because no information exists that would respond to the requirement.

The Offeror further covenants that, during the time between the submission of its proposal and the City's announcement of its decision to award the Contract, the Offeror will furnish the City with any changes or additions to such information necessary to ensure that this information remains accurate, complete and up-to-date.

REFERENCES

We have a goal of building strong, long term relationships with our customers, providing excellent customer service and consistently meeting or exceeding customer needs and expectations. Our success at meeting this goal is evidenced by our growth over the years.

Some examples of our strong relationships are included below. We grant our consent for the City of Richmond to contact these references for purposes of evaluating our company and acknowledge that any information obtained from these references will not be disclosed to us.

City of Alexandria, Virginia
Gregg Fields
Department of Code Administration
301 King Street, Room 4200
Alexandria, VA 22314
(703) 746-4185
gregg.fields@alexandriava.gov

We perform the same services for the City of Alexandria, VA that we perform for the City of Richmond.

The City of Alexandria has over 1,400 pieces of equipment. We have a regional office in Alexandria and a dedicated Office Manager. We notify the building owner/representative in advance and coordinate scheduling of tests and maintain a balanced workload for the approximately 1,400 annual tests and 1,400 periodic routines. We have been performing this work since 2003.

The Pentagon
Admiral Elevator Company
Brian Dudley
1002 N. Kresson Street
Baltimore, MD 21205
(443) 802-6927
bdudley@admiralelevator.com

The Pentagon, in Arlington County, VA, across the Potomac River from Washington, D.C., is the headquarters of the United States Department of Defense.

The Pentagon is the world's largest office building, with about 6.5 million square feet of space. Approximately 26,000 military and civilian employees work in the Pentagon, and the security is extremely high.

There are 125 pieces of equipment at the Pentagon. The scheduling at the Pentagon is different because of its high security and because the Pentagon and its elevator company (Admiral) perform all of the scheduling. We must be flexible to meet the frequency of inspections and work around the schedule of events at the Pentagon.

We must provide a list of five QEI inspectors who have the required level of security clearance. We still provide the excellent service they expect while having no control over the scheduling of inspections.

John F. Kennedy Center for the Performing Arts

David Froemming
2700 F. Street, NW
Washington, DC
(202)-416-7919
dfroemming@kennedy-center.org

The Kennedy Center is the US National Cultural Center, located on the Potomac River adjacent to the Watergate complex in Washington, DC.

It is a multi-dimensional facility which produces a wide array of performances encompassing the genres of theater, dance, ballet, and orchestral, chamber, jazz, popular, and folk music. It also offers multi-media performances for adults and children and is a nexus of performing arts education.

The Kennedy Center is home to approximately 3,500 performances each year for audiences totaling nearly two million.

We inspect 39 pieces of vertical transportation equipment in a manner that does not interfere with the heavy volume of people visiting the center each year.

U.S. Holocaust Memorial Museum
Tim Hemmer
1000 Raoul Wallenberg Place, SW
Washington, DC
202-479-9721
themmer@ushmm.org

The United States Holocaust Memorial Museum is the US official memorial to the Holocaust. It is located next to the National Mall in Washington, DC and provides for the documentation, study and interpretation of Holocaust history. It is dedicated to helping leaders and citizens of the world confront hatred, prevent genocide, promote human dignity and strengthen democracy.

The Holocaust Museum open in 1993 and has averaged more than 1 million visitors per year since then. There are 15 vertical transportation units at the museum.

Catholic University
Karen Kreamer-Porter
620 Michigan Avenue NE
Washington, DC 20064
202-319-5121
Kreamer@cua.edu

Catholic University of America is a private in Washington, D.C.. The school was founded in 1887, and it's programs emphasize the liberal arts, professional education and personal development.

There are over 50 buildings on campus and a student population of approximately 6,000 (undergraduates and postgraduates). There are 52 vertical transportation units on campus.

Howard University
Charles Mante
2251 Sherman Avenue NW
Washington, DC 20001
202-806-1003
cmante@howard.edu

Howard University is a private in Washington, DC. The school was founded in 1867 and covers over 120 acres.

There is a student population of approximately 10,300 (undergraduates and postgraduates). There are 94 vertical transportation units on campus.

Boston Properties
Jeffrey Garner
2200 Pennsylvania Ave, NW
Washington, DC 20037
(202) 585-0800
jgarner@bostonproperties.com

Boston Properties, Inc., a self-administered and self-managed American real estate investment trust (REIT), is one of the largest owners, managers and developers of Class A office properties in the United States, with a significant presence in five markets: Boston, Los Angeles, New York, San Francisco and Washington, DC.

Our inspection program for Boston Properties covers approximately 300 pieces of equipment and is fragmented in two jurisdictions, Washington DC and Maryland. Our Corporate office follows the same scheduling procedures that we use for both the City of Richmond and City of Alexandria.

The one caveat related to scheduling for Boston Properties is there are no routines required in the state of Maryland, while all units in the District of Columbia require the same level of service as the City of Richmond.

Tower Companies
Donna Nurmi
1909 K Street, NW Suite C180
Washington, DC. 20006
202.617-3751
donna.nurmi@towercompanies.com

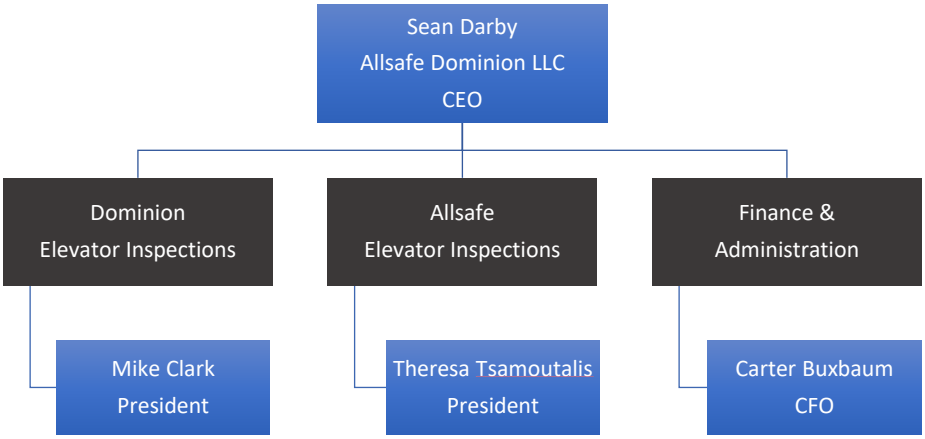
Tower Companies develop, own and manage commercial, retail and multi-family residential properties in the DC Metro area.

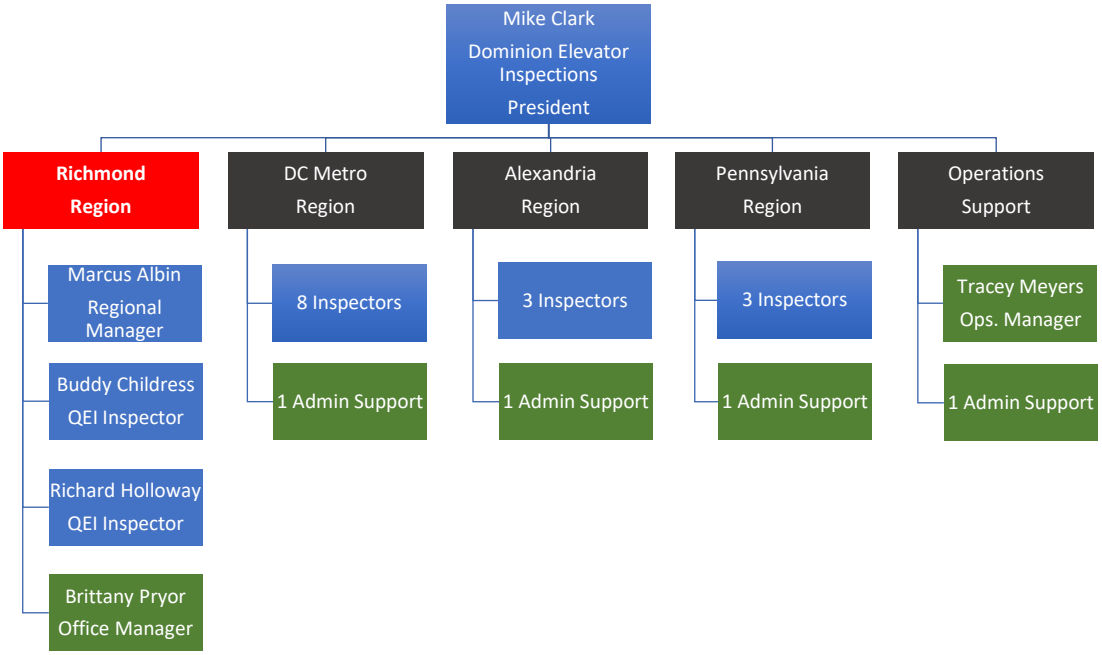
We provide similar services for the Tower Companies that we do for Boston Properties since we inspect their vertical transportation units in DC and Maryland.

PROJECT APPROACH

A. As highlighted in the organizational charts below, Dominion is owned by Allsafe Dominion LLC and operates in four regions: Richmond, DC Metro, Alexandria and Pennsylvania. We have had an office in Richmond for 15 years. The Richmond office has four full-time employees.

The other elevator inspection company owned by Allsafe Dominion LLC is Allsafe Elevator Inspections. Allsafe is based is Baltimore and performs inspections primarily in Maryland.





B. Dominion Inspector Supervisor, Marcus Albin, has been part of the pilot program for the City-provided electronic devices. Over the past 18 months, Marcus has received training and has field tested the device. He has also met with other City of Richmond inspector supervisors for field training.

Our two other Richmond inspectors, Marion (Buddy) Childress and Richard Holloway are available for the 80 hours of training. Buddy and Richard are both residents of the greater Richmond area, so scheduling the training will be easy to arrange. They are already aware of the electronic device program and are looking forward to using the devices.

In addition to our field inspectors, Brittany Pryor, our Richmond Office Manager, will be trained on the use of the electronic devices. She is a Richmond area resident, so scheduling for her will also be easy to accommodate. She will act as a back-up in assisting our field inspectors with any field issues.

All Dominion inspectors will have available a cellular data hotspot and wifi connection to enable the use of the electronic devices provided by the City.

C. Marcus Albin, the local Dominion lead inspector, is a certified QEI Inspection Supervisor. We feel it is important to have a local inspector with this supervisor certification.

Additionally, Mike Clark, the President of Dominion, is also a certified QEI Inspector Supervisor. We believe that having two accessible inspectors with the supervisor certification is very important, as it provides a back-up if necessary.

D. Dominion has three Inspectors and an Office Manager who live in the greater Richmond area. They have company cell phones and are very customer service oriented. This local presence and customer service mindset allow us to meet all the required response times in sections 2.8 and 2.12.

E. Marcus Albin currently performs the plan reviews for the City of Richmond. He performs the reviews electronically. The plans are sent electronically to him, and he reviews and stamps the drawings electronically.

   Once the City's designed software is ready for plan reviews, Marcus will adopt this system for plan reviews.

F. Mike Clark will be responsible for implementing the quality control program. Mike will perform the quality control inspections along with Marcus Albin on no less than 10% of all inspections. Both individuals have extensive elevator maintenance and inspection experience.

   Our definition of an effective QC program requires the inspector to visit the location previously inspected and meet the building representative to verify the time, date, appearance and overall attitude of the inspector at the time of the inspection. We want the building representatives to feel confident that we have professional qualified inspectors who take their job seriously. During the QC inspection, a complete inspection of the machine room, hoistway, pits, in-car phone, alarm bell, etc. are performed in the presence of the building representative.

   Our inspectors will wear a Dominion uniform (shirt and jacket). We feel it is important to ask the building personnel about the appearance and attitude of the inspector at the time of inspection. Our inspectors represent Dominion and The City of Richmond in the performance of their inspections.

G. Tracey Meyers (Wellsville, PA) and Brittany Pryor (Richmond) have been working together for over two years generating and submitting the invoices to the City of Richmond.

   We have been following the protocol listed in section 2.13 for the last several years.

Please find attached a copy of a sample invoice and supporting detailed spreadsheet on the following pages.

Dominion Elevator Inspection Services
7475 Carlisle Road
Wellsville, PA 17365
(877) 653-4500
billing@dominioninspections.com
dominioninspections.com

Invoice

BILL TO
The City of Richmond, Virginia
Bureau of Permits and Inspections
900 E. Broad St., Room 110
Richmond, VA 23219

INVOICE #	DATE	TOTAL DUE	DUE DATE	TERMS	ENCLOSED
101055	05/03/2019	$8,011.31	06/02/2019	Net 30	

P.O. NUMBER
19000000397

INSPECTED	LOCATION	QTY	RATE PER UNIT	EXTENDED
04/16/2019	**CitRich:Item 1** Item 1 - Category 1 Test Inspection ***	32	83.89	2,684.48
04/16/2019	**CitRich:Item 2** Item 2 - Routine Inspection ***	45	42.97	1,933.65
04/16/2019	**CitRich:Item 2** Item 2 - Reinspection ***	1	42.97	42.97
04/16/2019	**CitRich:Item 3** Item 3 - Category V Full Load ***	3	163.68	491.04
04/16/2019	**CitRich:Item 5** Item 5 - Final Acceptance Permit Inspections ***	6	194.37	1,166.22
04/16/2019	**CitRich:Item 6** Item 6 - Testing After Hours ***	5	97.19	485.95
04/16/2019	**CitRich:Item 10** Item 10 - Brittany Pryor (Hourly) ***	71	17.00	1,207.00
04/16/2019	Inspections done during the SECOND HALF of APRIL 2019 ***			

BALANCE DUE **$8,011.31**

TO INSURE PROPER CREDIT, PLEASE INCLUDE INVOICE # WHEN SUBMITTING PAYMENT

INVOICE

Location #	Unit #	Address	Date	Description	Qty	Unit Price	Extended
Item 1-Category 1 Test Inspections							
129	P001, P002, P004, P005	6 N Laurel Street	2/20/2019	Category One	4	$83.89	$335.56
	P001	151 Commerce Road	4/17/2019	Category One	1	$83.89	$83.89
166	P001, P002, P003	601 E Leigh Street	2/20/2019	Category One	3	$83.89	$251.67
179	P001	815 Porter Street	4/19/2019	Category One	1	$83.89	$83.89
403	P001	107 N 2nd Street	4/17/2019	Category One	1	$83.89	$83.89
460	P001	611 W 31st Street	4/17/2019	Category One	1	$83.89	$83.89
483	P001	1117 Cary Street	4/15/2019	Category One	1	$83.89	$83.89
525	P001, P002	1100 German School Road	4/17/2019	Category One	2	$83.89	$167.78
711	P005	411 E Franklin Street	4/16/2019	Category One	1	$83.89	$83.89
	P001	718 N 23rd Street	4/19/2019	Category One	1	$83.89	$83.89
763	P001	681 Hioaks Road	4/16/2019	Category One	1	$83.89	$83.89
786	P001	3001 N Boulevard	4/17/2019	Category One	1	$83.89	$83.89
866	P001	1617 Monument Avenue	4/23/2019	Category One	1	$83.89	$83.89
877	P002, P003, P007, W008	1600 Westwood Avenue	4/23/2019	Category One	4	$83.89	$335.56
877	P007, P001, W009	1600 Westwood Avenue	2/22/2019	Category One	3	$83.89	$251.67
1435	P001	926 Chimborazo Blvd	4/19/2019	Category One	1	$83.89	$83.89
1664	P001, P002, P003	301 Virginia Street	4/19/2019	Category One	3	$83.89	$251.67
1852	P001	3600 Deepwater Terminal Road	4/18/2019	Category One	1	$83.89	$83.89
	P001	4217 Hermitage Road	4/18/2019	Category One	1	$83.89	$83.89
TOTAL					**32**		**$2,684.48**
Item 2- Routine Inspections							
363	F002	209 N Foushee Street	4/15/2019	Routine	1	$42.97	$42.97
364	P001	2925 Rady Street	4/15/2019	Routine	1	$42.97	$42.97
493	P001	1707 Summit Avenue	4/15/2019	Routine	1	$42.97	$42.97
561	F001	2201 E Franklin Street	4/15/2019	Routine	1	$42.97	$42.97
642	P001	2930 W Broad Street	4/15/2019	Routine	1	$42.97	$42.97
664	P002	2700 Hanes Avenue	4/15/2019	Routine	1	$42.97	$42.97
713	P001	311 S Boulevard	4/16/2019	Routine	1	$42.97	$42.97
724	P001	312 E Broad Street	4/16/2019	Routine	1	$42.97	$42.97
790	F001	1700 W Main Street	4/17/2019	Routine	1	$42.97	$42.97
796	P001	2501 Monument Avenue	4/17/2019	Routine	1	$42.97	$42.97
811	F001	715 Bowe Street	4/17/2019	Routine	1	$42.97	$42.97
834	P001	2201 Westwood Avenue	4/17/2019	Routine	1	$42.97	$42.97
847	P001	823 Cathedral Place	4/18/2019	Routine	1	$42.97	$42.97
933	P001, P002	11 S 12th Street	4/16/2019	Routine	2	$42.97	$85.94
973	F001	2325 W Broad Street	4/18/2019	Routine	1	$42.97	$42.97
985	F001	3004 W Marshall Street	4/18/2019	Routine	1	$42.97	$42.97
1003	F001, P002, P003, P004, P005, P006, P007, P008, P009, P010	951 E Broad Street	4/17/2019	Routine	10	$42.97	$429.70
1013	P001	3211 Chamberlayne Avenue	4/25/2019	Routine	1	$42.97	$42.97
1066	P001	201 E Franklin Street	4/25/2019	Routine	1	$42.97	$42.97
1173	F001	320 N 18th Street	4/25/2019	Routine	1	$42.97	$42.97
1350	P001, P002, P003, P004	1500 N 28th Street	4/18/2019	Routine	4	$42.97	$171.88
1404	P001	4207 Forest Hill Avenue	4/18/2019	Routine	1	$42.97	$42.97
1480	P001, P002	7608 Forest Hill Avenue	4/18/2019	Routine	2	$42.97	$85.94
1661	P001	1333 W Broad Street	4/15/2019	Routine	1	$42.97	$42.97
1670	P001, W002	30 Malvern Avenue	4/15/2019	Routine	2	$42.97	$85.94
1679	W001	2113 E Main Street	4/18/2019	Routine	1	$42.97	$42.97
1715	P001, W002	6801 Patterson Avenue	4/15/2019	Routine	2	$42.97	$85.94
1744	P001	41 Malvern Avenue	4/15/2019	Routine	1	$42.97	$42.97
1795	W001	205 N Hamilton Street	4/15/2019	Routine	1	$42.97	$42.97
TOTAL					**45**		**$1,933.65**

Item 3-Re-Inspection							
2061	P001	5700 Grove Avenue	2/19/2019	Re-Inspection Final	1	$42.97	$42.97
TOTAL					**1**		**$42.97**
Item 4-Full Load-Category V Test Inspections							
1329	P001, P004	7 N 8th Street	4/15/2019	Category Five	2	$163.68	$327.36
1329	P004	7 N 8th Street	4/16/2019	Category Five	1	$163.68	$163.68
TOTAL					**3**		**$491.04**
Item 5-Final Acceptance Permit Inspections							
726	P003, P004	2024 W Broad Street Permit#L036773-2018	4/18/2019	Final	2	$194.37	$388.74
	P002	1021 Carlisle Avenue Permit#L043697-2018	2/20/2019	Final	1	$194.37	$194.37
	P001	1719 N 22nd Street	4/19/2019	Final	1	$194.37	$194.37
	P001	1719 N 22nd Street	4/19/2019	Temp Final	1	$194.37	$194.37
	D001	7945 Burrundie Drive	4/25/2019	Final	1	$194.37	$194.37
TOTAL					**6**		**$1,166.22**
Item 6-Test (After Hours)							
		600 E Canal Street	4/18/2019	After Hours	5	$97.19	$485.95
TOTAL					**5**		**$485.95**
Item 7-Plan Review							
				Plan Review		$30.69	$0.00
TOTAL					**0**		**$0.00**
Item 8-Investigate Accident							
				Accident		$61.38	$0.00
TOTAL					**0**		**$0.00**
Item 9-Reinspection (Construction Modernization Final)							
						$42.97	$0.00
TOTAL					**0**		**$0.00**
Item 10- Brittany Pryor's City of Richmond Hours							
		Weeks of 4/15/19, 4/22/19, and 4/29/19			71	$17.00	$1,207.00
TOTAL							**$1,207.00**
						INVOICE TOTAL	**$8,011.31**

OFFEROR QUALIFICATIONS

Dominion has extensive experience in performing the annual periodic inspections and testing required in this solicitation.

There are eight key qualifications that Dominion possesses that make us qualified to perform the scope of work defined in the RFP:

1. Superior team of executives, inspectors and support staff
2. Proper Training
3. Experience with Large Jurisdictions
4. Local offices
5. Scheduling experience with elevator companies, building owners and City of Richmond
6. Experience with all types of equipment
7. Ability to work with different software platforms
8. Track record of success

Superior team of executives, inspectors and support staff

Having good people is important in any business, and having a great team is critical in a technical service business like elevator inspections.

Our Richmond team includes:

Sean Darby is the CEO of Allsafe Dominion LLC, the parent company of Dominion. Sean has 29 years of experience in the elevator industry, working for Otis elevator for 20 years (in Sales and Service) and in the inspection industry for 9 years.

Mike Clark is the President of Dominion. Mike has 38 years of experience in the elevator industry, working for Otis Elevator for 8 years (as a mechanic), for National Elevator Inspection Services (NEIS) for 14 years and for the Dominion for the last 16 years.

Marcus Albin is the Richmond Regional Manager and the primary point of contact for the City of Richmond contract. Marcus has 34 years of experience in the elevator industry, working for Thyssen Krupp for 15 years as a mechanic and 19 years as a QEI inspector for NEIS and Dominion.

The two other full-time inspectors on the Richmond team are Marion (Buddy) Childress and Richard Holloway. These two individuals were both elevator mechanics based in the Richmond area prior to becoming inspectors. They have been inspectors in Richmond for several years and are also familiar with the buildings and processes.

Our office manager is Brittany Pryor. Brittany has managed the Richmond office for three years and works closely with the City of Richmond team. Brittany is responsible for the administrative functions of the Richmond office. She also lives in Richmond area.

Dominion has 17 QEI-certified inspectors (14 outside of Richmond) with an average of more than 25 years of experience in the elevator industry. Their understanding of elevators and related code requirements is exceptional. If needed, the Richmond office of Dominion can draw on these resources.

Proper Training

All Dominion inspectors have the required training, code books and tools needed to perform any inspection.

All of our inspectors maintain their QEI qualifications by attending an 8-hour approved workshop and completing a 2-hour webinar each year.

Mike Clark and Marcus Albin maintain the QEI Supervisor status which includes all requirements for QEI inspectors plus an additional Supervisor training.

All inspectors assigned to this project have attended the 3-day Core module, the 3-day Elevator Module and completed 16 hours of continuing education within the last 2 years in order to maintain the Virginia Inspector General classification.

Experience with large jurisdictions

Dominion is the current provider of elevator inspection services for the City of Richmond and the City of Alexandria. We have been the City of Richmond provider for 15 years and the City of Alexandria provider for 16 years.

These jurisdictions require similar procedures in terms of scheduling and reporting. Dominion has developed strong relationships with all of the elevator maintenance companies serving Richmond. These relationships ensure smooth scheduling and communication with building personnel. Elevator inspections can be an interruption for building tenants, and our experience and relationships make the inspection process as smooth as possible.

We have demonstrated that we can meet the demands of a large jurisdiction, including the following:

- Scheduling the periodic inspections
- Performing the inspections
- Processing the inspection reports
- Performing plan reviews (and other non-inspection work), as needed
- Invoicing for the work performed

Local Offices

The local office in Richmond is a competitive advantage for Dominion. We believe it is imperative to have administrative and technical support in close proximity to each other and the City of Richmond. This close proximity provides better collaboration and communication and allows us to schedule more effectively.

We believe the team supporting the inspectors is very important, and we have invested accordingly. Dominion has three regional offices – Richmond, Alexandria and Wellsville – to support our inspectors.

Scheduling experience with elevator companies, building owners and City of Richmond

Dominion has a local office to ensure scheduling is efficient and smooth. Marcus Albin provides a single point of contact for scheduling. Marcus has many years of experience scheduling with the elevator maintenance companies, and he has an excellent working relationship with their personnel.

On the administrative side, Brittany Pryor has a strong relationship with the City of Richmond personnel and assists in ensuring all customer information is correct and certificates are issued. Our administrative support is a huge asset.

Experience with all types of equipment

Richmond is an older city with all types of manufacturers and vintages of elevator and escalator equipment. For an inspection program to operate effectively, inspectors need to have experience with different equipment. Our Richmond team of inspector has an average of over 30 years of experience working with elevators.

Further, our retention rate for inspectors is extremely high, so our workforce is very stable. We understand the inspectors are the face of our business.

Ability to work with different software platforms

Dominion has a software platform to maintain a comprehensive and accurate diary list of all buildings, elevators and inspection dates. Brittany Pryor has been instrumental in helping the City of Richmond create an accurate data base for the Energov platform.

Note that we are also keeping a hard copy back-up of the inspection paperwork during the rollout of EnerGov to make sure no information is lost.

In addition, we are using a tablet-based platform for electronic scheduling and reporting in the State of Maryland. This allows the inspection process to be paperless and have all the information stored in the cloud.

Our successful experience with using technology to make the process more efficient is an asset. This experience will help us in working with the City of Richmond and the EnerGov platform.

Track record of success

Dominion was founded in 1991and has grown into one of the largest elevator inspection companies in the Mid-Atlantic region. Our customer list includes Fortune 500 companies, federal and local government entities, universities and hospitals, and major property management portfolios. Dominion inspects over 12,000 units annually.

The 28 years of successful growth and business experience make Dominion well-qualified to continue to provide elevator inspection services to the City of Richmond.

SUBCONTRACTING

We will not be utilizing Subcontractors in the execution of this contract.

EXHIBIT 2

PRICING SCHEDULE

PRICING: Unless indicated by an hourly rate, all prices shall be per unit - inspection basis.

Item	Description	Unit	Unit Price
1	Category 1 Test Inspection per section 2.3C	each	$ 92
2	Routine (6-Month) Inspections per section 2.3C	each	$ 49
3	Category 5 Test Inspections per section 2.3C	each	$ 195
4	Re-inspections of Category 1, Category 5, and Routine (6-Month) Inspections per section 2.3H	each	$ 49
5	Re-inspections of New or Altered Elevating Equipment per section 2.4F	each	$ 49
6	Final Acceptance of New or Altered Elevating Equipment per section 2.4E	each	$ 225
7	Plans Review for New or Modernization Installation per section 2.7A	each	$ 50
8	Elevator Accidents, Complaints, and Emergencies per hour per sections 2.8 A and 2.7B	each	$ 60
9	After Hours Inspections per hour if requested per sections 2.8, 2.11, and 2.12	each	$ 105

ALLSELE-01 LWOOL

CERTIFICATE OF LIABILITY INSURANCE

DATE (MM/DD/YYYY) 5/22/2019

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must have ADDITIONAL INSURED provisions or be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER
Preferred Insurance Services, Inc
4035 Ridge Top Road, Suite 150
Fairfax, VA 22030

CONTACT NAME: Certificate Department
PHONE (A/C, No, Ext): (703) 667-5940 FAX (A/C, No): (703) 991-4838
E-MAIL ADDRESS: certs@preferins.com

INSURER(S) AFFORDING COVERAGE	NAIC #
INSURER A: Great American Insurance Company	16691
INSURER B: Erie Insurance Exchange	26271
INSURER C: Navigators Insurance Company	42307
INSURER D: Accident Fund Insurance Company Of America - Main Carrier Entry	10166
INSURER E: National Union Fire Ins Co	19445
INSURER F:	

INSURED
ATAB, LLC dba Dominion Elevator, LLC
7475 Carlisle Road
Wellsville, PA 17365

COVERAGES CERTIFICATE NUMBER: REVISION NUMBER:

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

INSR LTR	TYPE OF INSURANCE	ADDL INSD	SUBR WVD	POLICY NUMBER	POLICY EFF (MM/DD/YYYY)	POLICY EXP (MM/DD/YYYY)	LIMITS	
A	X COMMERCIAL GENERAL LIABILITY							
	CLAIMS-MADE X OCCUR			GLP132459702	4/29/2019	4/29/2020	EACH OCCURRENCE	$ 1,000,000
							DAMAGE TO RENTED PREMISES (Ea occurrence)	$ 300,000
							MED EXP (Any one person)	$ 5,000
							PERSONAL & ADV INJURY	$ 1,000,000
	GEN'L AGGREGATE LIMIT APPLIES PER:						GENERAL AGGREGATE	$ 4,000,000
	POLICY X PRO-JECT LOC						PRODUCTS - COMP/OP AGG	$ 4,000,000
	OTHER:							$
B	AUTOMOBILE LIABILITY						COMBINED SINGLE LIMIT (Ea accident)	$ 1,000,000
	X ANY AUTO			Q04-2931051	4/29/2019	4/29/2020	BODILY INJURY (Per person)	$
	OWNED AUTOS ONLY / SCHEDULED AUTOS						BODILY INJURY (Per accident)	$
	X HIRED AUTOS ONLY / X NON-OWNED AUTOS ONLY						PROPERTY DAMAGE (Per accident)	$
								$
C	UMBRELLA LIAB X OCCUR						EACH OCCURRENCE	$ 5,000,000
	X EXCESS LIAB CLAIMS-MADE			1S19EXC8716687IV	4/29/2019	4/29/2020	AGGREGATE	$ 5,000,000
	DED RETENTION $							$
D	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY						X PER STATUTE OTH-ER	
	ANY PROPRIETOR/PARTNER/EXECUTIVE OFFICER/MEMBER EXCLUDED? (Mandatory in NH) Y/N N	N/A		WCV6106829	4/29/2019	4/29/2020	E.L. EACH ACCIDENT	$ 1,000,000
	If yes, describe under DESCRIPTION OF OPERATIONS below						E.L. DISEASE - EA EMPLOYEE	$ 1,000,000
							E.L. DISEASE - POLICY LIMIT	$ 1,000,000
E	E & O			13469398	4/25/2019	4/25/2020	Each wrongful act	1,000,000
E	E & O			13469398	4/25/2019	4/25/2020	Aggregate	1,000,000

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (ACORD 101, Additional Remarks Schedule, may be attached if more space is required)
RE: Evidence of Insurance

CERTIFICATE HOLDER

City of Richmond, Virginia
900 East Broad Street, Room 1101
Richmond, VA 23219

CANCELLATION

SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS.

AUTHORIZED REPRESENTATIVE

ACORD 25 (2016/03)

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Contract No. 20000003712

CITY OF RICHMOND

PROCUREMENT SERVICES CONTRACT MODIFICATION NO. 4
(RENEWAL)

THIS CONTRACT MODIFICATION is made and entered into as of the 30th day of April, 2024, by and between the City of Richmond, hereinafter referred to as the "City," and ATAB, LLC dba Dominion Elevator Services, hereinafter referred to as the "Contractor."

WITNESSETH

WHEREAS, on September 20, 2019, the City and the Contractor entered into Contract No. 20000003712 (the "Contract");

WHEREAS, pursuant to section 1.1 of the Terms and Conditions of the Contract, the initial term was two years;

WHEREAS, pursuant to section 1.3 of the Terms and Conditions of the Contract, the City may renew this Contract for up to two (2) of two (2) year renewal terms; and

WHEREAS, on September 1, 2021, the City and the Contractor executed a Contract Modification to document the City's exercise of the first of a two two-year renewal option to renew the Contract under section 1.3 of the General Terms and Conditions of the Contract for the term of September 20, 2021, through September 19, 2023; and

WHEREAS, on October 14, 2022, the City and the Contractor executed a Contract Modification (i) to increase the contract amount from $600,000.00 to $1,000,000.00 and (ii) a rate increase of 4.5% in accordance with Exhibit 2; and

WHEREAS, on April 12, 2023, the City and the Contractor executed a Contract Modification to increase the contract amount from $1,000,000.00 to $1,600,000.00; and

WHEREAS, since September 19, 2023, the Contractor has continued to provide services to the City pursuant to the Terms and Conditions of the Contract, which services have been ordered and accepted, and the City and the Contractor have proceeded in all respects as though the Contract was still in force in effect; and

WHEREAS, the parties deem it to be to their mutual benefits to modify the aforementioned Contract by (i) exercising the second of (2) two-year renewal options, under Section 1.3 of the Terms and Conditions of the Contract; (ii) to increase the contract amount from One Million Dollars Six Hundred Thousand Dollars ($1,600,000.00) to Two Million Two Hundred Thousand (2,200,000.00); and

NOW, THEREFORE,

That for and in consideration of the mutual benefits to be derived by the City and the Contractor, the Contract is hereby modified as follows:

1. The Contract is hereby and shall be deemed renewed for the period commencing at midnight on September 20, 2023, and ending at 11:59p.m. on September 19, 2025, pursuant to section 1.3 of the Terms and Conditions of the Contract.

2. Contract Amount. The maximum authorized contract amount for this Contract is Two Million Two Hundred Thousand 00/100 U. S. dollars ($2,200,000.00). The aggregate of all payments by the City under this Contract shall not exceed this amount. Orders placed against this contract will be through fully approved purchase orders issued by the City. The pricing under this contract shall be in accordance with Exhibit 2 (attached and incorporated by reference). By signing this contract, the Contractor agrees not to accept orders from the City without a fully approved purchase order. Acceptance of other orders are at the Contractor's sole risk.

The City and the Contractor covenant and agree each with the other that the Contract, between the parties, except as modified herein, shall be and remain in full force and effect.

IN TESTIMONY WHEREOF, the City and the Contractor have executed this instrument as of the respective dates written below.

APPROVED:

Rene M. Almaraz
Director of Procurement Services

4/30/24
Date

Contractor *(signature in ink)*

SEAN DARCY
(printed name)

4/25/26
Date